人工智慧研發、部署與提供利用時之

智財調適與開源解方

v.20261024

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Legal Adviser @ Herding Open Source Management Consultants Ltd. & Gemly Int’l IPR Office
林誠夏 / Lucien Cheng-hsia Lin Email: lucien.cc@gmail.com
LinkedIn: https://tw.linkedin.com/in/lucienchlin

資策會科法研究所專題講座 2026.10.30

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lucien.cc@gmail.com

林誠夏 / Lucien C.H. Lin

本職：

1 、群牧開源管理顧問有限公司 / 鈞理知識產權事務所 法制顧問

2 、 CC Taiwan Chapter Lead 、台灣開源法律網絡 共同創辦人

3 、究心公益股份有限公司獨立董事

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2 、臺北市政府公共參與組市政顧問

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臺灣主權AI訓練語料庫
(Beta版)

關於語料庫 | 申請須知 | 語料資料集 | 授權條款 | 合作夥伴 | 登入/註冊

臺灣主權AI訓練語料授權條款-第1版

前言：

為促進以人為本的人工智慧（AI）研發與應用，增進公眾利益、提升在地文化價值，並促進自然語料的永續發展，特訂立本授權條款，以加速並提倡相關資料之流通。

一、名詞定義

1. **授權人**：指具備合法權利的個人或單位，依據本授權條款提供其所管理之語料資料予被授權人，以協助被授權人在被明確同意的基礎下，使用該等語料資料於人工智慧的訓練與學習。

https://taic.moda.gov.tw/content/license

三、課予義務

(一)使用者利用依本條款提供之開放資料，視為同意遵守本條款之各項規定，並應以尊重第三人著作人格權之方式利用之。

(二)使用者利用依本條款提供之開放資料，及後續之衍生物，應以符合附件所示「顯名聲明」要求之方式，明確標示原資料提供機關之相關聲明；未盡顯名標示義務者，視為自始未取得開放資料之授權。

四、版本更新及授權轉換

(一)本條款如有修正，依舊條款提供之開放資料，於新條款公告時，使用者得選擇採用新條款利用。但原資料提供機關，於提供開放資料時，已訂明其使用之特定版本條款者，不在此限。

(二)本條款與「創用CC授權 姓名標示 4.0 國際版本」相容，使用者依本條款利用開放資料，如後續以「創用CC授權 姓名標示 4.0 國際版本」規定之方式利用，視為符合本條款之規定。

五、停止提供

有下列情形之一者，各資料提供機關得停止全部或一部開放資料之提供，使用者不得向資料提供機關請求任何賠償或補償：

1. 因情事變更或其他正當事由，致各資料提供機關評估繼續提供該開放資料供公眾使用，已不符合公共利益之要求。

https://data.gov.tw/license



臺灣主權AI訓練語料庫(Beta版)

::: 關於平台 語料資料集 消息專區 合作夥伴 提供語料 登入/註冊

三、標示義務

1.除非依法免除或經授權人另行同意，於語料資料之應用型態為模型、權重等工具或輸出平臺之產出時，被授權人應標示語料平臺，就該語料資料提供之相關識別資訊，例如資料集名稱、版本號、資料集提供者、發布年份、資料集申請頁面或官方網站、或其他經授權人指定之格式化引用資訊，以及指出係依「臺灣主權AI訓練語料授權條款-第1版 (Taiwan Sovereign AI Training Data License–Version 1.0)」發布之狀態，此一授權資訊之呈現，得標示授權條款正式全稱，例如：「臺灣主權AI訓練語料授權條款-1.0－有效期間至2030年」、「臺灣主權AI訓練語料授權條款-1.0－有效期間為永久」、"SAITD-Lic-Taiwan-1.0-Valid until 2030"、"SAITD-Lic-Taiwan-1.0-Valid in perpetuity"。

2.鑒於人工智慧訓練涉及多元來源之語料資料混用，授權人同意就本授權條款發布之語料資料，進行識別資訊標示時，被授權人僅需就語料平臺提供之語料資料庫或資料集名稱，及其他相關識別資訊進行標示，毋須就本授權語料資料內含個別素材，如語文、音樂、美術、攝影、圖形、視聽、錄音等客體進行逐項標示。

3.於語料資料之應用型態為程式碼、文件等型態之輸出時，相關標示義務得視媒介或載體之限制，採更為簡化之方式為之。例如採人工智慧軟體模型或服務平臺進行輸出執行，後續輸出成果於公開演播或展示時，應註明其為「人工智慧生成產出」等資訊，以彰顯資訊或可能偏離事實或應另行查找權威資訊以資確認。

四、使用政策

1.被授權人應就語料資料之使用成果，包括人工智慧訓練之產出與輸出，於合理範圍內設置適當防護機制，以避

https://taic.moda.gov.tw/content/license

法制沿革務實的角度

探索人工智慧其研發、部署、提供利用產生的爭議

及開源模式可能帶來的調校疏解與資安強化之道

大綱

1. 人工智慧各環結相關之法律爭議

1.1. AI 訓練階段的爭議

1.2. AI 產出階段的爭議

1.3. AI 輸出階段的爭議

2. 善用開源或公眾授權模式來排解爭議

2.1. CC 主權 AI 語料與 Signal 協作框架

2.2. 開源跨域統合經濟端點

2.3. CRA 下的資安協作架構

1. 人工智慧各環結相關之法律爭議

研發、部署、利用

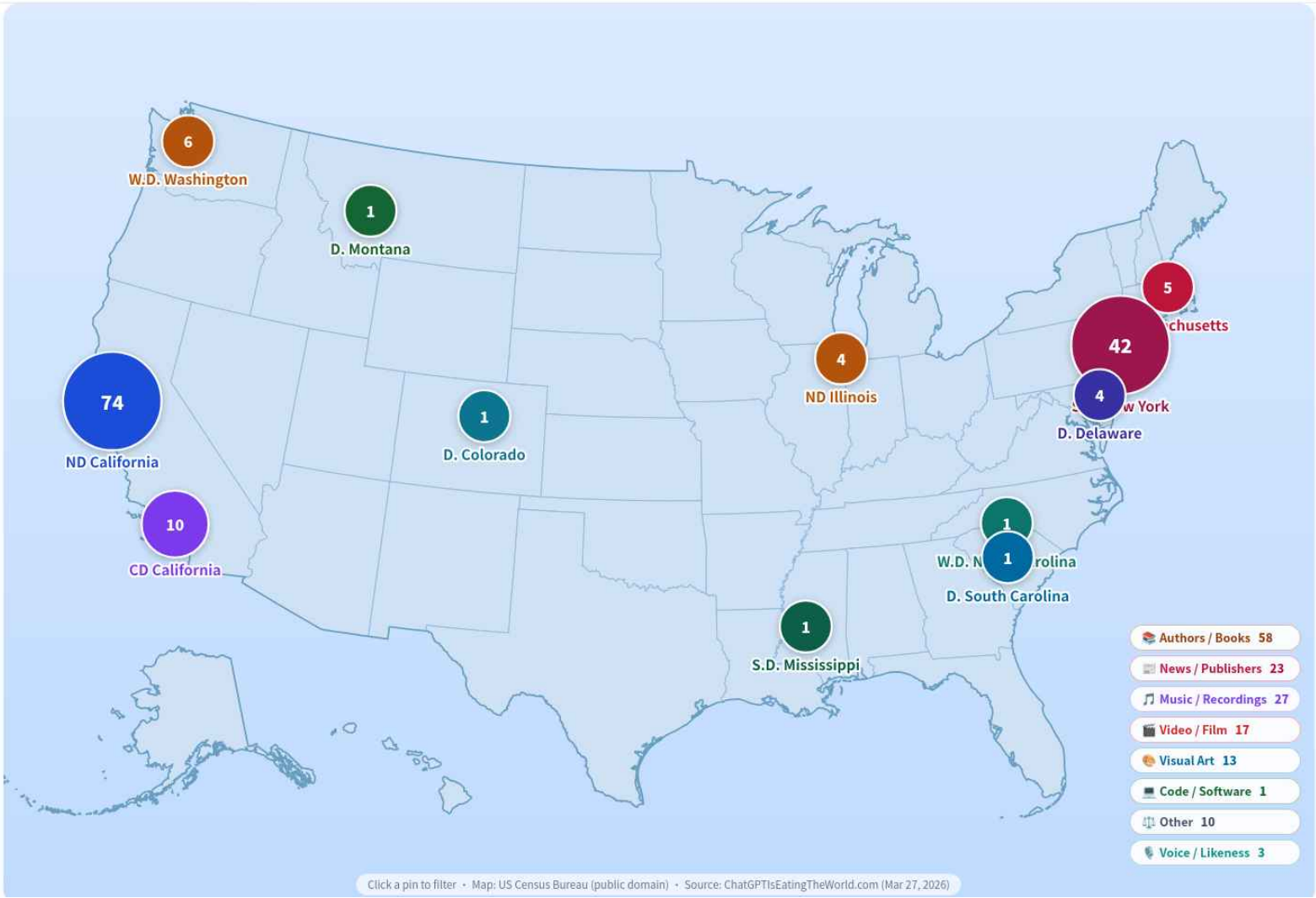
訓練、產出、輸出

訓練 → 產出 → 輸出

- Training → Outcomes: models, weights, softwares, tools, documentation
- Outcomes → Outputs

1.1. AI 訓練階段的爭議

Training- 學習的問題



All Cases (156)

🎬 **Gardner v. Runway AI** — Proposed Class Action — ACTIVE
⚖️ Judge Gee 🏢 Runway AI 📍 CD Cal.

🎬 **Chmura v. Snap** — Proposed Class Action — ACTIVE
⚖️ Judge Blumenfeld Jr. 🏢 Snap 📍 CD Cal.

📚 **Barkley & Assocs. v. Quizlet** — ACTIVE
⚖️ Judge Hsu 🏢 Quizlet 📍 CD Cal.

🎨 **EVOX Productions v. Stability AI** — ACTIVE
⚖️ Judge Snyder 🏢 Stability AI 📍 CD Cal.
Case No. 2:26-cv-07201 • Co-defendants: Runway AI, Hugging Face, DeviantArt

🎨 **EVOX Productions v. Midjourney** — ACTIVE
⚖️ TBA 🏢 Midjourney 📍 CD Cal.
Case No. 2:26-cv-08408

🎬 **Druyan-Sagan Associates, Inc. v. Luma AI, Inc.** — ACTIVE
⚖️ TBA 🏢 Luma AI 📍 CD Cal.
Case No. 2:26-cv-09474 • Filed Aug. 25, 2026

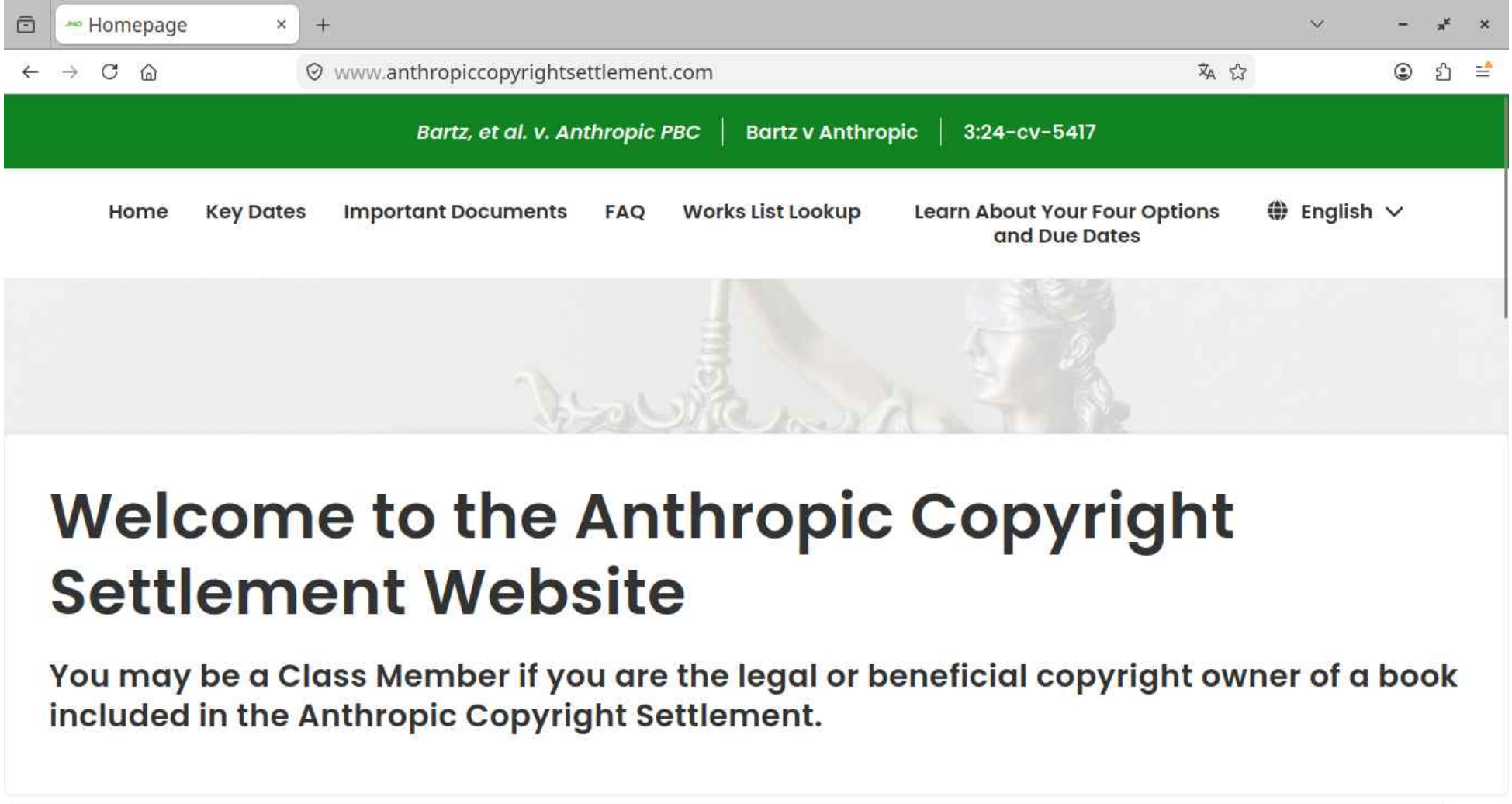
D. COLORADO

🎨 **Pierce v. Photobucket** — Proposed Class Action — ACTIVE
⚖️ Judge Brimmer 🏢 Photobucket 📍 D. Col.

D. DELAWARE

⚖️ **Thomson Reuters v. ROSS Intelligence** — ON APPEAL
⚖️ Judge Bibas 🏢 ROSS Intelligence 📍 D. Del.
Appeal 3d Cir.

🎙️ **Vacker v. Eleven Labs** — SETTLED

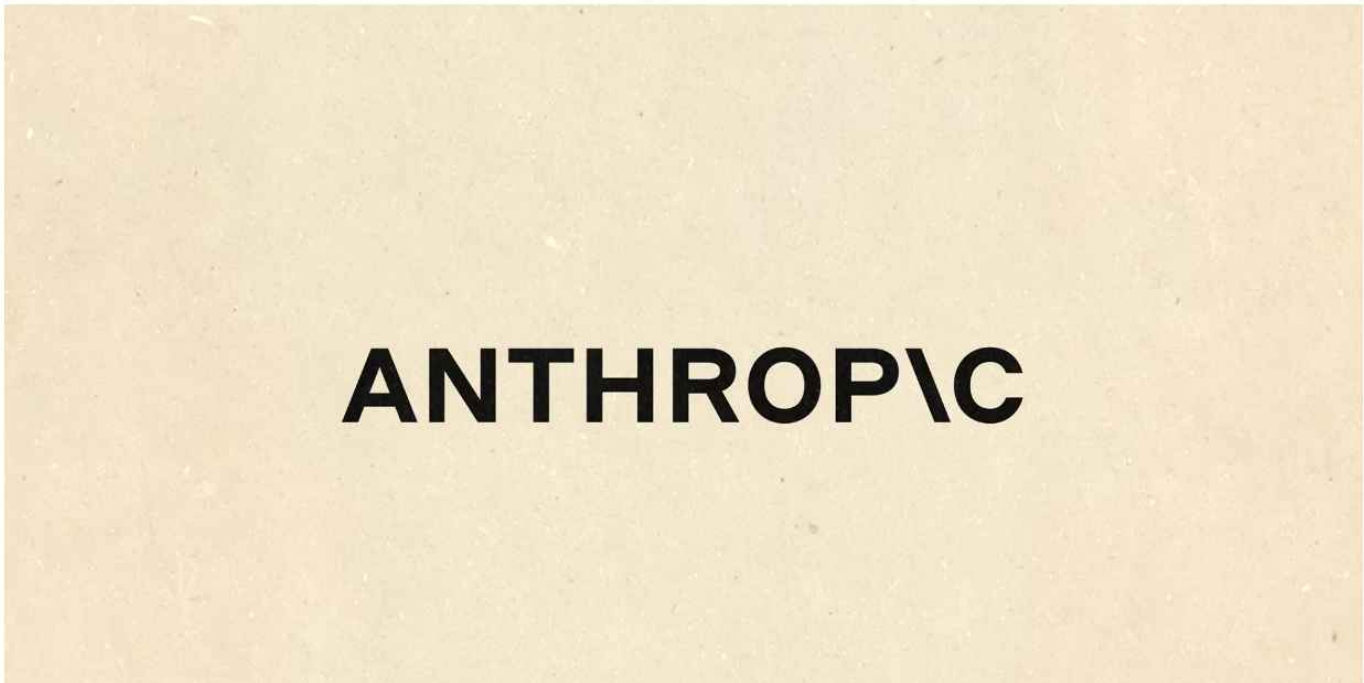


https://www.anthropiccopyrightsettlement.com/

AI 人工智慧

AI 訓練使用正版書就合法？NCC 前主委詹婷怡解析 Anthropic 15 億美元著作權爭議

TO 編輯推薦觀點 2026-10-21



熱門文章

1. GitHub 爆紅的 REA 真能逆向任何軟體？從 51 件實作看 AI Agent 的能力與限制
2. AlphaGo 推手 David Silver 不走 LLM 路線，要讓 AI 在模擬「熔爐」裡從零自學
3. Anthropic 為何捨棄 Git？自研 Scion 揭 AI Agent 時代開發新瓶頸
4. 一名駭客靠 AI 代理攻破 100 多家企業網站，研究員估每次成功入侵約 50 美元

訓練：

- 盜版書→轉資料庫、不合理（重製未被尊重）
- 合法購買→轉資料庫、合理

產出 → 可能、然此例原告未爭執



2026.10.20 | AI與大數據

AI巨頭瘋狂掃書，台灣也是供應來源！563公噸書籍運美，揭開Anthropic神祕「巴拿馬計畫」

AI巨頭Anthropic全球大量收購紙本書訓練AI，台灣也成供應來源！563公噸書籍運往美國，背後牽出神祕「巴拿馬計畫」。

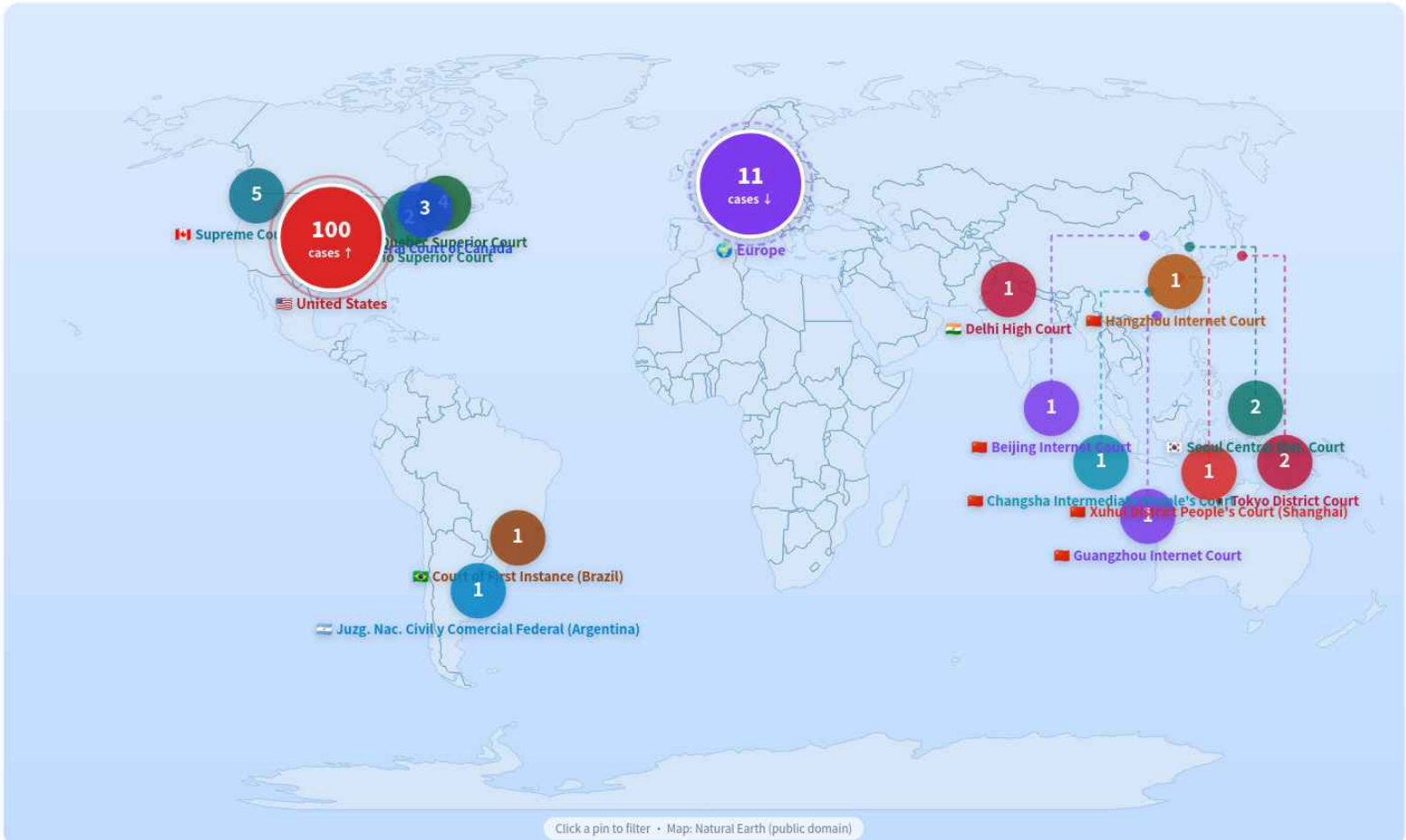
#AI #Anthropic

陳建鈞

Copyright Suits v. AI Companies — Outside the U.S.

TOTAL CASES · COUNTRIES · NON-U.S. · SETTLED · ON APPEAL · DISMISSED

* Includes one non-copyright case (Lehmann v. YouTube — right of personality claim)



All International Cases (37)

UNITED KINGDOM

Getty Images v. Stability AI (UK) — ON APPEAL
Stability AI · United Kingdom
On appeal

GERMANY

Kneschke v. LAION — ON APPEAL
LAION · Germany
On appeal — Hamburg High Regional Court

GEMA v. OpenAI — ACTIVE
OpenAI · Germany

GEMA v. Suno — ACTIVE
Suno · Germany
Judgment July 31, 2026 (42 O 763/25): Suno ordered to cease AI training & output reproduction; TDM opt-out via robots.txt held valid

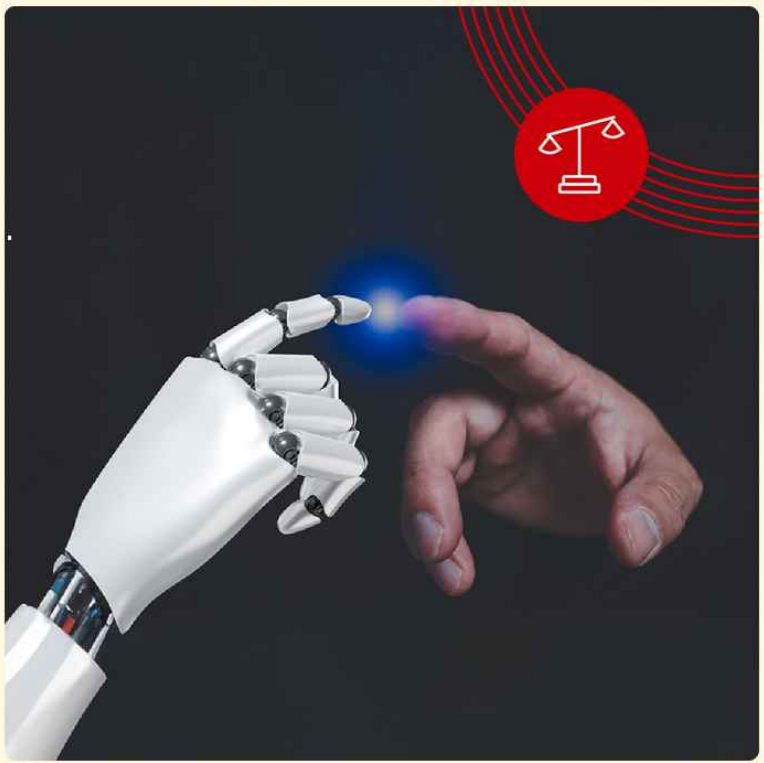
Penguin Random House v. OpenAI — ACTIVE
OpenAI · Germany

Lehmann v. YouTube* — ACTIVE
YouTube · Germany
** Right of personality claim (not copyright)*

DENMARK

KODA v. Suno — ACTIVE
Suno · Denmark

FRANCE



GEMA sues for fair compensation

GEMA is the first collecting society worldwide to file a lawsuit against a provider of generative artificial intelligence (AI) systems that have used copyright-protected musical works to train their systems without having acquired licenses.

January 2025: Lawsuit against Suno AI
Suno AI generates songs (audio files) using generative AI. The results that Suno AI delivers are in some cases so similar to well-known songs that they infringe the authors copyright.

November 2024: Lawsuit against Open AI (ChatGPT)
GEMA accuses Open AI of reproducing protected song lyrics by German authors in its tool ChatGPT without having remunerated the authors of the works used.

Chat with “Melody”

1.2. AI 產出階段的爭議

Outcomes & replacement & Fair Use- 取代的問題

NEWS | 07 October 2026 | Update 09 October 2026 | Clarification 12 October 2026

OpenAI posts 700 maths preprints online: mathematicians are up in arms

The firm used an unreleased model to tackle hundreds of high-profile problems.

By Davide Castelvecchi

Save article

The research community is in uproar after OpenAI released a trove of more than 700 mathematical preprints entirely generated by artificial intelligence on 6 October. The ChatGPT maker based in San Francisco, California, posted the preprints on the software

Access through your institution
Buy or subscribe

Related Articles

Can maths survive AI? Fields medallist Terence Tao calls for a 'Maths 2.0' world



Who gets credit in the AI era? OpenAI maths bombshell sparks debate



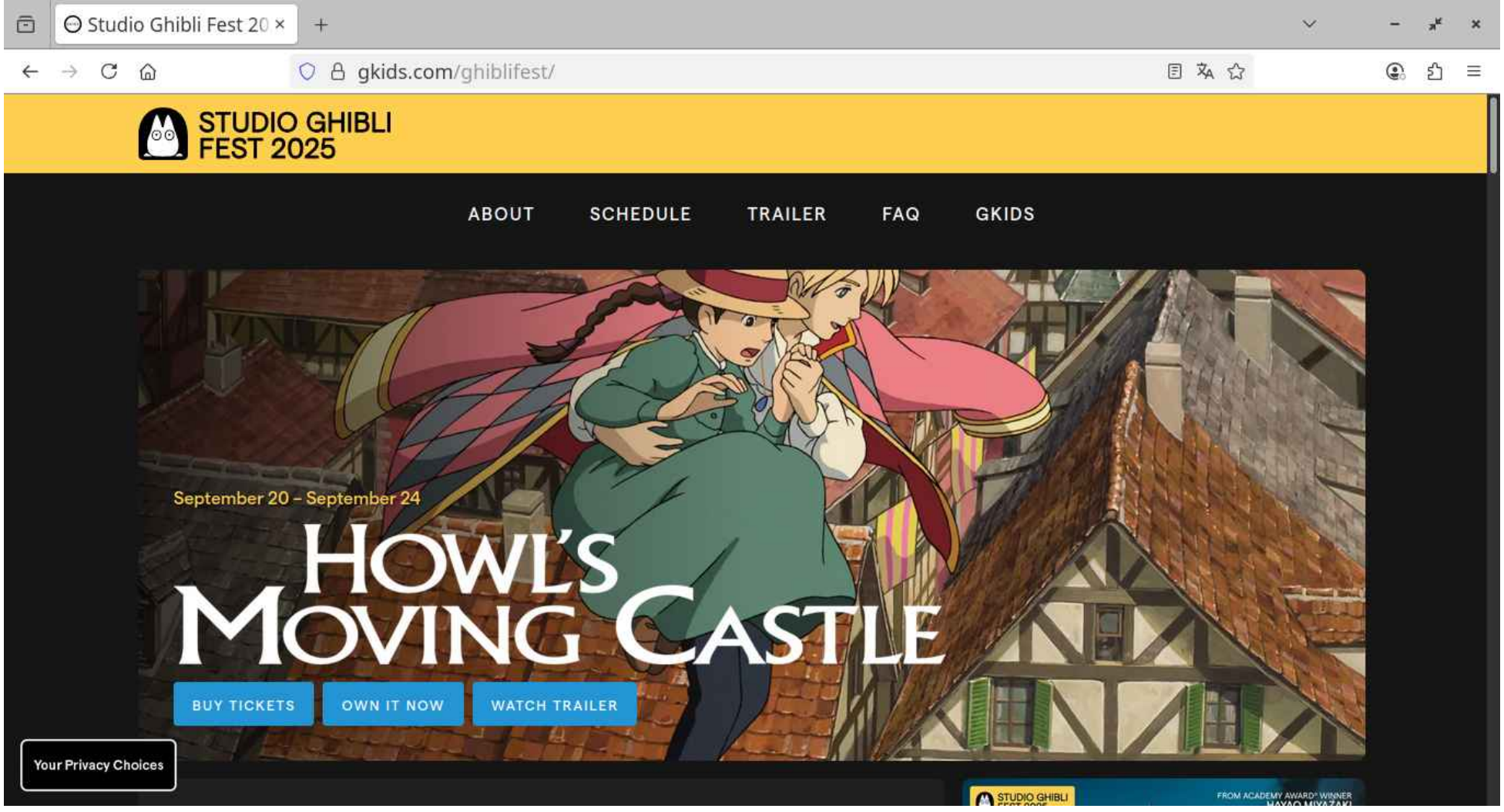
Humans outperform AI at this highly rigorous mathematics test



'It is incredible': How AI is



FAIR USE @ https://theinitium.com/opinion/20250412-culture-ai-arts-ethics-ghibli



FAIR USE @ https://gkids.com/ghiblifest/



FAIR USE @ https://talkacemedia.com/article/39051

吉卜力經典名作《紅豬》將於 9 月 4 日重返大銀幕。圖片來源：甲上娛樂發布

お知らせ 2025.10.28

OpenAI社に「Sora 2」の運用に関する要望書を提出

CODAは会員社からの要請に基づき、2025年10月27日、OpenAI社に対し、同社が2025年9月30日よりサービスを開始した「Sora 2（sora.chatgpt.com）」の運用に関して要望書を提出しました。

CODAは、Sora 2において日本の既存コンテンツまたはそれに酷似する映像が多数生成されている事実を確認しており、これらは日本コンテンツを学習データとして取り込んだ結果に起因すると判断しています。また、Sora 2のように特定の著作物

https://coda-cj.jp/news/2577/

合理之方式與資訊—釐清

1. 利用之目的及性質
2. 被利用著作性質
3. 利用的質量比例
4. 對原作潛在或現有價值影響

AI 時代的合理使用、盡量不要與原生素材市場產生衝突

Exclusive | Universal
www.wsj.com/business/media/universal-music-settles-with-ai-firm-udio-c926ca39
200%
WSJ Barron's MarketWatch IBD WSJ | Buy Side
THE WALL STREET JOURNAL.
SUBSCRIBE SIGN IN

EXCLUSIVE MEDIA

Universal Music Settles With AI Firm Udio

Udio agrees to launch a new subscription service for fans to create music based on licensed songs

By Katherine Sayre Follow

Oct. 29, 2025 8:28 pm ET

Aa Listen (1 min)



https://www.wsj.com/business/media/universal-music-settles-with-ai-firm-udio-c926ca39

Warner Music Group
www.reuters.com/legal/litigation/warner-music-group-settles-copyright-case-with-suno-licensed-ai-music-2025-11-25/
200%
Exclusive news, data and analytics for financial market professionals LSEG
Reuters
My News
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Register

Warner Music Group settles copyright case with Suno for licensed AI music

By **Reuters**

November 26, 2025 4:25 AM GMT+8 · Updated November 26, 2025

Aa
Feedback



https://www.reuters.com/legal/litigation/warner-music-group-settles-copyright-case-with-suno-licensed-ai-music-2025-11-25/

音樂產業 vs AI 新創

1. 先起訴 → 2. 後和解 → 3. 談分潤

→ 壓縮合理使用的解釋和空間

~~Transformative~~ FAIR USE

1 、 the **purpose** and character of the use, including whether such use is of a commercial nature or is for nonprofit educational purposes

2 、新的用途、新的觀點、新的表達方式

3 、也就是說**與原作品的利用模式不生衝突**

1.3. AI 輸出階段的爭議

Outputs & Responsible AI Use- 驗證的問題

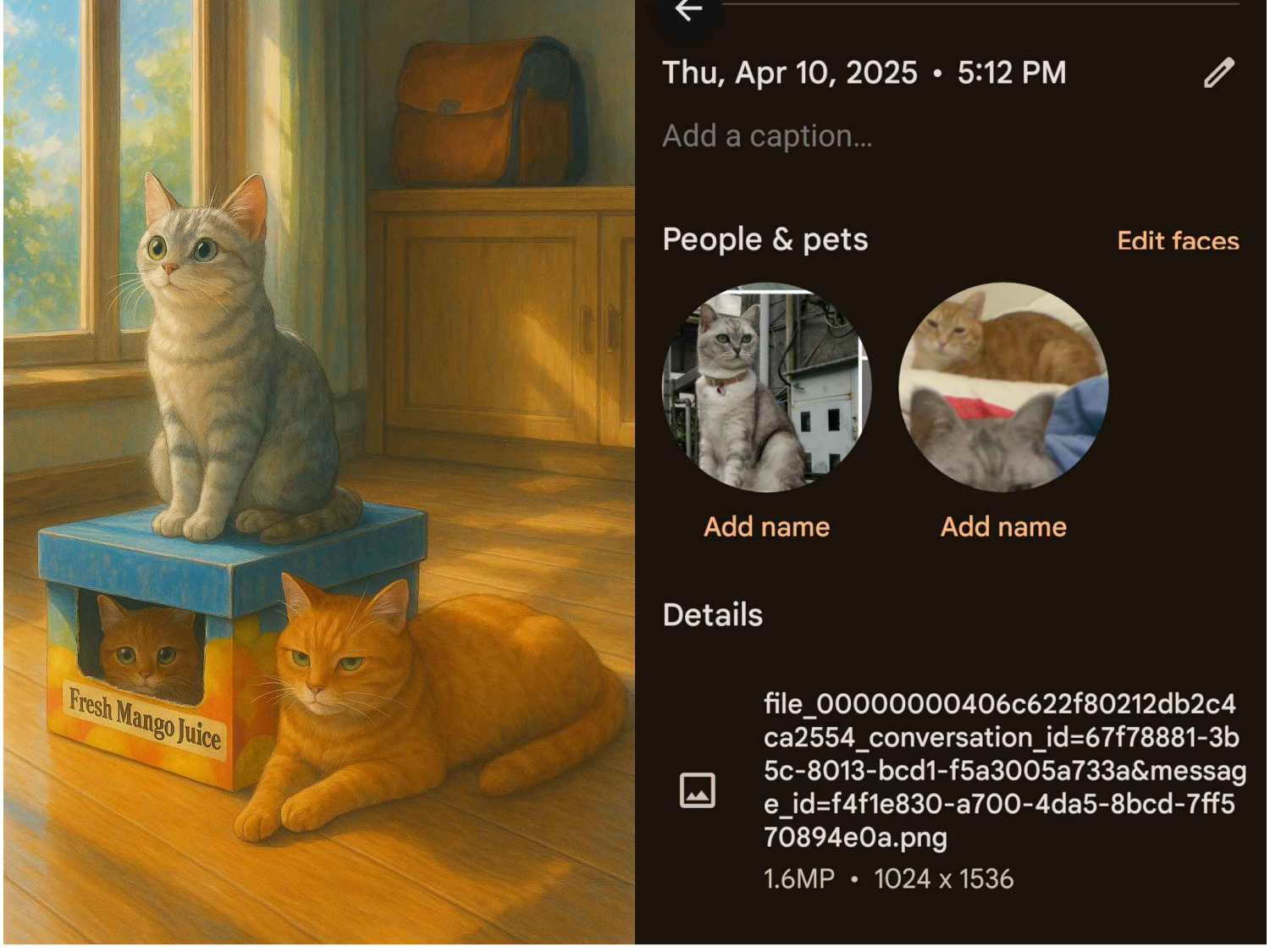
NEWS FEATURE | 01 April 2026

Hallucinated citations are polluting the scientific literature. What can be done?

Tens of thousands of publications from 2025 might include invalid references generated by AI, a *Nature* analysis suggests.

By Miryam Naddaf & Elizabeth Quill





"Reference illustration" by Lucien C.H. Lin with ChatGPT 4o, AI-generated, CC0-1.0, April 10, 2025.

Google有超過1/4的 ×
https://www.ithome.com.tw/news/165758
170%

Google有超過1/4的新程式碼是由AI生成的

Alphabet及Google執行長Sundar Pichai對外揭露該公司的AI基礎設施以及如何利用生成式AI強化旗下服務，其中指出Google的新程式碼中，已經有超過1/4是由AI生成的，再由工程師負責審查與接納

文/ 陳曉莉 | 2024-10-30 發表

讚 355 分享



FAIR USE @ https://www.ithome.com.tw/news/165758

新聞

Gemini 3.5刪除近3萬行程式碼，修改設定，導致用戶系統斷線半小時

有開發人員在Reddit自述，Gemini 3.5在代理式IDE環境中，刪除將近3萬行程式碼，新增錯誤設定並擅自修改專案檔案，導致營運網站斷線超過半小時

文/ 林妍溱 | 2026-05-25 發表



iT+ 看影片追技
AEB大補帖 資安防護大作戰！
資安弱點日新月
曝險管理平台協
站瞭解公司資訊

https://www.ithome.com.tw/news/176087

無罪推定與自證陷阱：從台積電文學獎爭議，重新思考AI時代的徵文遊戲規則

2026/09/18 文學 · 讀者投書





Linux 核心維護者 Greg Kroah-Hartman：AI 寫的修補，至少一半是錯的 【AI 大人說】

AI 101
4.54萬位訂閱者
訂閱

529 分享 儲存

https://www.youtube.com/watch?v=3OB4xnDqjoY

智財權 / 著作權既有生態習性與新興 AI 產業的對抗與衝擊



FAIR USE @ https://www.youtube.com/watch?v=24VQv9E6wpQ

2. 善用開源或公眾授權模式

來排解爭議

Copyright and Artificial Intelligence



Since launching an initiative in early 2023, the Copyright Office has been examining the copyright law and policy issues raised by artificial intelligence (AI), including the scope of copyright in AI-generated works and the use of copyrighted materials in AI training. After hosting public listening sessions and webinars, the Office published a notice of inquiry in the *Federal Register* in August

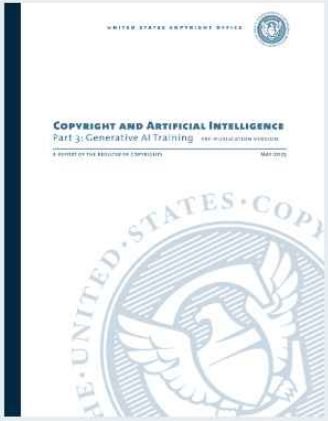
Subscribe to NewsNet via email

Copyright Registration Guidance for Works Containing AI-Generated Materials

Read Policy Statement

Federal Register Version, 88 Fed. Reg. 16,190 (Mar. 16, 2023)

are completed and linked below.



Report on Copyright and Artificial Intelligence

Copyright and Artificial Intelligence analyzes copyright law and policy issues raised by artificial intelligence (AI). This Report is being issued in several Parts. Part 1 was published on July 31, 2024, and addresses the topic of digital replicas. Part 2 was published on January 29, 2025, and addresses the copyrightability of outputs created using generative AI. On May 9, 2025, the Office released a pre-publication version of Part 3 in response to congressional inquiries and expressions of interest from stakeholders. A final version of Part 3 will be published in the future, without any substantive changes expected in the analysis or conclusions.

Part 1: Digital Replicas

Part 2: Copyrightability

Part 3: Generative AI Training (Pre-publication)

Notice of Inquiry

NOI Federal Register Version, 88 Fed. Reg. 59,942 (Aug. 30, 2023)

Registration Decisions for AI-Generated Materials

Allen v. Perlmutter

Thaler v. Perlmutter

Statements to Congress

Related Resources

Copyright and Artific
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Copyright and Artificial Intelligence

Part 3: Generative AI Training

PRE-PUBLICATION VERSION

A REPORT OF THE REGISTER OF COPYRIGHTS

MAY 2025

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G. International Approaches *76*

V. LICENSING FOR AI TRAINING **85**

A. Voluntary Licensing *85*

1. Feasibility of Voluntary Licensing 86

2. Ability to Provide Meaningful Compensation 92

3. Possible Legal Impediments to Collective Licensing 94

B. Statutory Approaches *95*

1. Compulsory Licensing 95

2. Extended Collective Licensing 99

3. Opting Out 101

C. Analysis and Recommendations *103*

VI. CONCLUSION **107**

https://www.copyright.gov/ai/Copyright-and-Artificial-Intelligence-Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf

推動AI創新與著作權保護 三部會共邀內容與AI業者召開交流會議

推動數位政府

為因應AI發展對資料流通與創新利用需求，並同時兼顧內容產業的著作權益，數位發展部、文化部與經濟部智慧財產局於本（10）月16日首度共同召開權利人意見交流會議，邀集國內內容產業代表與公協會、AI應用端業者，以及相關領域專家等，就AI發展與著作權保護相關議題交換意見。期盼藉由利害關係人之間的討論交流，以及跨部會合作與產業對話，作為後續政策推動與法制研議的重要參考。

本次交流會議由數發部侯宜秀政務次長、文化部徐宜君常務次長，與智慧局廖承威局長共同主持，聽取內容端與使用端的實務經驗及關切議題，就AI訓練所需資料的利用與授權、著作權益保障、優質語料的整備與產業合作等議題進行交流。

數發部說明，AI研發業者需要大量高品質語料，內容創作者則關切作品的利用情形與合理回饋；如何兼顧雙方需求，是政府推動資料治理的重要課題。為尋求AI 創新與著作權保護的衡平發展，智慧局與數發部分別研訂《生成式人工智慧著作權指引》草案與《促進資料創新利用發展條例》草案，期盼透過本次會議的溝通，作為後續政策研議與滾動調整的基礎。

文化部徐次長表示，文化內容創作者與使用者其實有共同的目標，尋求能夠創新利用並確保創作者權益、維持創作動能的共好機制。文化部長期支援國內文化內容創作，期待透過跨部會與產業持續對話，進一步討論內容創作者參與AI發展的合作

衡平AI創新與著作權保護之推動方向

115年10月

數位發展部

衡平AI創新與著作權保護之發展方向(3/3)

合理衡平著作權人與利用者權益

推動「使用報酬給付機制」，適度擴大法院量刑裁量空間，回應技術發展需求



著作財產權人



AI研發利用者

不適用著作權法第七章

限符合下列情形之一：

1、著作係於市場交易流通所取得之合法重製物

2、已公開揭露利用著作之資訊並訂定使用報酬給付機制



送著作權專責機關備查



排除條款

- **明示退出**：資料取得時，業經著作財產權人以適當方式，明示其著作不提供人工智慧開發、訓練、測試或驗證之利用。
- **影響市場**：產出結果顯著影響著作之潛在市場或現有價值。
- **無防範措施**：未採取有效措施，防範人工智慧之產出侵害他人著作財產權或著作人格權。

制度方向

- ✓ 為人工智慧之開發、訓練、測試或驗證，因資料彙整或分析之必要，犯著作權法第七章之罪者，得減輕或免除其刑。
- ✓ 著作係於市場交易流通所取得之合法重製物，或已公開揭露利用著作之資訊並訂定使用報酬給付機制者，不適用著作權法第七章規定；使用報酬給付機制，應送著作權專責機關備查。

Copyright and Artific ×
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https://www.copyright.gov/ai/Copyright-and-Artificial-Intelligence-Part-3-Generative-AI-Training-Report-Pre-Publication-Version.pdf

2.1. CC 主權 AI 語料與 Signal 協作框架處理 AI 學習的問題

Judge approves $1.5 ×

apnews.com/article/anthropic-authors-copyright-judge-artificial-intelligence-9

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BUSINESS

Judge approves $1.5 billion copyright settlement between AI company Anthropic and authors



https://apnews.com/article/anthropic-authors-copyright-judge-artificial-intelligence-9643064e847a5e88ef6ee8b620b3a44c

Datasets: GPT-NL / GPT-NL_Public_Corpus

Like 22 Follow GPT-NL 114

Modalities: Tabular Text Formats: parquet Languages: Dutch English German +2 Size: 100M - 1B

ArXiv: arxiv:2604.00920 Libraries: Datasets Dask Polars +1 License: cc-by-4.0

Dataset card Data Studio Files xet Community 6

This dataset has 8 files scanned as unsafe. Show files

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Use this dataset

Dataset Viewer

Auto-converted to Parquet API Embed Duplicate Data Studio

Subset (32)
american-stories · 77.5M rows

Split (1)
train · 77.5M rows

Search this dataset

...ths	language string · classes	license string · classes

Downloads last month 2,831

Number of rows:
302,078,553

Total file size:
948 GB

Dataset Card GPT-NL Public Corpus

The GPT-NL Public Corpus is the largest permissively licensed Dutch-language resource available for large language model pretraining. It consists of 29 curated collections totaling over 524 billion tokens, including 36B Dutch, 207B English, 232B code, and 48B German/Danish tokens. All data is sourced under permissive licensing and redistributed under a CC-BY license. For more details please refer to our Public Corpus article.

Dataset Description

- **Curated by:** GPT-NL Team
- **Language(s) (NLP):** Dutch, English, German, Danish, Frisian, Code
- **License:** CC-BY. If you use (part of) the Public Corpus, please cite like stated below. *Note*: this is the license of the corpus. However, all datapoints have specific licenses attributed in the metadata field. These licenses are based on the license of the original source dataset that was curated or augmented for the purpose of creating the GPT-NL public corpus. Author names are given for collections with a CC-BY license. For Code datasets, we link the original Github link where the original license conditions can be found.

Spaces using GPT-NL/GPT-NL_Publi… 2
Rijgersberg/random-GPT-NL-document
AIStudioDelta/Rechtspraak

Collection including GPT-NL/GPT-NL_Pu…
GPT-NL Pretraining Corpus Collection
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Introduction
Related Work
Guidelines for suitable data
Creation of the GPT-NL Public Corpus
Evaluation
Dataset Overview
Limitations
Acknowledgments
Bibliographical References

GPT-NL Public Corpus: A Permissively Licensed, Dutch-First Dataset for LLM Pre-training

Jesse van Oort[*]
Frank Brinkkemper[†]
Erik de Graaf[*]
Bram Vanroy[‡]
Saskia Lensink[*]

[*]TNO, The Netherlands
{firstname}.{lastname}@tno.nl

[†]GPT-NL, The Netherlands
frank.brinkkemper@gpt-nl.nl

[‡]Instituut voor de Nederlandse Taal, The Netherlands
KU Leuven, Belgium
bram.vanroy@ivdnt.org

Apr 2026

https://arxiv.org/pdf/2604.00920

AI-Ready 開放資料專案

AI-ready Open Data Project

FAIR + TRUST

打造 AI-Ready Data 的雙引擎

FAIR 的資料，存放於 TRUST 的環境，創造可被信任、可被利用的未來。

FAIR 資料本身的特性 The quality of data

F — Findable 可被找到
- 提供豐富的中繼資料
- 使用永久識別碼（PID）
- 可被搜尋引擎索引

A — Accessible 可被存取
- 明確的存取政策與授權
- 使用標準通訊協定
- 即使資料變動仍可存取

I — Interoperable 可互通
- 明用開放標準格式
- 使用共享詞彙與本體
- 可與其他資料整合

R — Reusable 可被重複使用
- 清楚的使用授權（如 CC）
- 詳細的來源與描述
- 符合領域標準與品質

高品質資料 High Quality Data

↓

可信任環境 Trusted Environment

↓

創造價值 Create Value with Confidence

TRUST 資料保存環境的特性 The quality of the environment

T — Transparency 透明性
- 公開政策與流程
- 資訊清楚可查
- 決策可追溯

R — Responsibility 責任性
- 明確的角色與責任
- 倫理與法律遵循
- 利害關係人參與

U — User Focus 以使用者為中心
- 了解使用者需求
- 提供良好使用體驗
- 持續回饋與改進

S — Sustainability 永續性
- 長期保存與營運計畫
- 穩定的資源與支援
- 可持續的商業模式

T — Technology 技術性
- 採用可靠的技術
- 符合安全與隱私標準
- 持續更新與創新

適用領域 Applications

- 研究資料 Research Data
- 政府開放資料 Open Government Data
- 醫療健康資料 Health Data
- AI 訓練資料 AI Training Data
- 環境與永續資料 Environmental Data

帶來的價值 Benefits

- 提升信任 Build Trust
- 促進創新 Drive Innovation
- 促進合作 Enable Collaboration
- 創造影響力 Generate Impact

Made with ChatGPT-4.5 by Lucien C.H. Lin · CC0

公私協力、資料開放入法

第十二條 政府應致力推動人工智慧相關之國際合作；並基於公私協力原則，積極與民間共同推動人工智慧之創新運用。

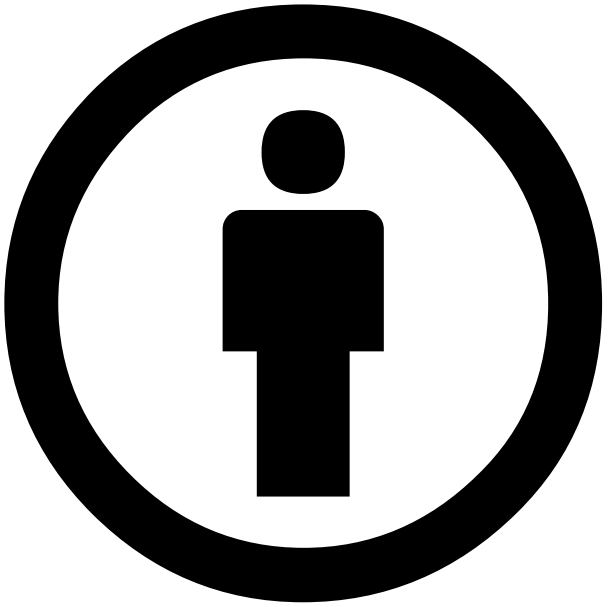
第十三條 政府應建立資料開放、共享及再利用機制，以提升人工智慧使用資料之可利用性，並定期檢視與調整相關法令及規範。

什麼是 CC 授權？能吃嗎？

- 不能吃、但是能用來讓相關作品或資料流通傳散的更快！

CC 授權條款 / 放話條款

我的創作可以借你抄、給你用，但是你必須按照我預先設定的遊戲規則。



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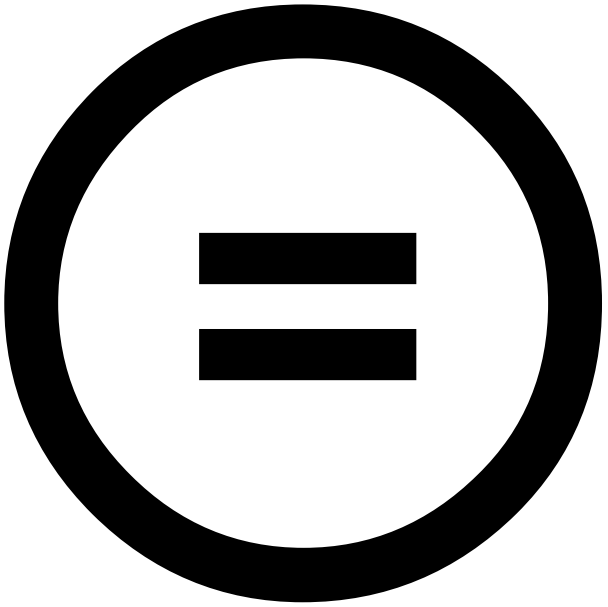
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CC NC

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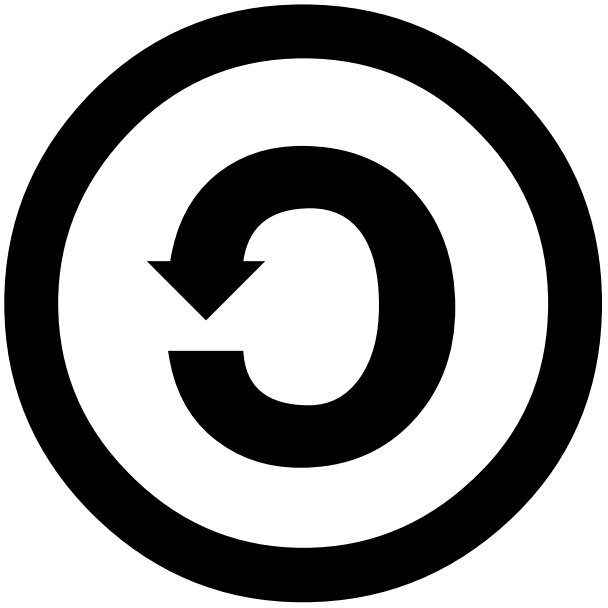
素材**不得被用於金錢的換取**或其他商業營利行為



CC ND

禁止改作 / No derivatives

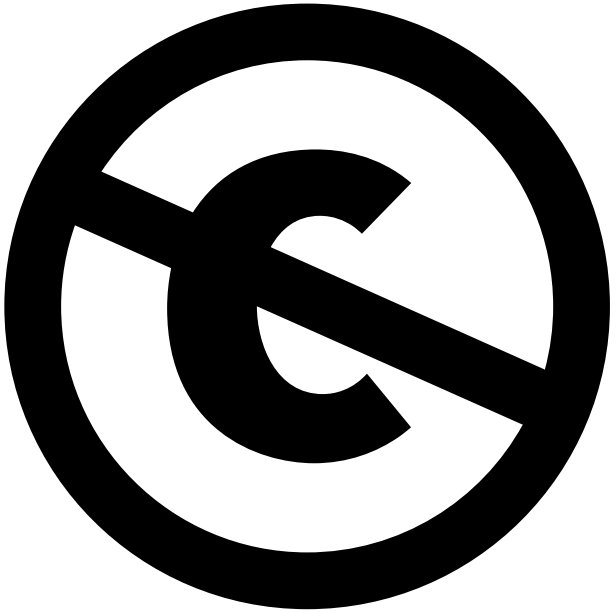
作品在被利用過程中的原**創作內涵不能被改變**



CC SA

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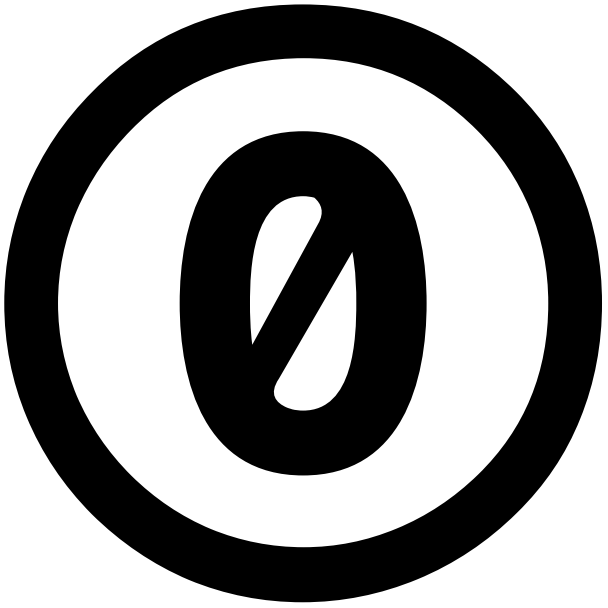
不論是否改作、**後續作品都必須依完全一致的授權方式被利用**



PDM

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將**不受著作權限制之作品**以簡單、標準化的
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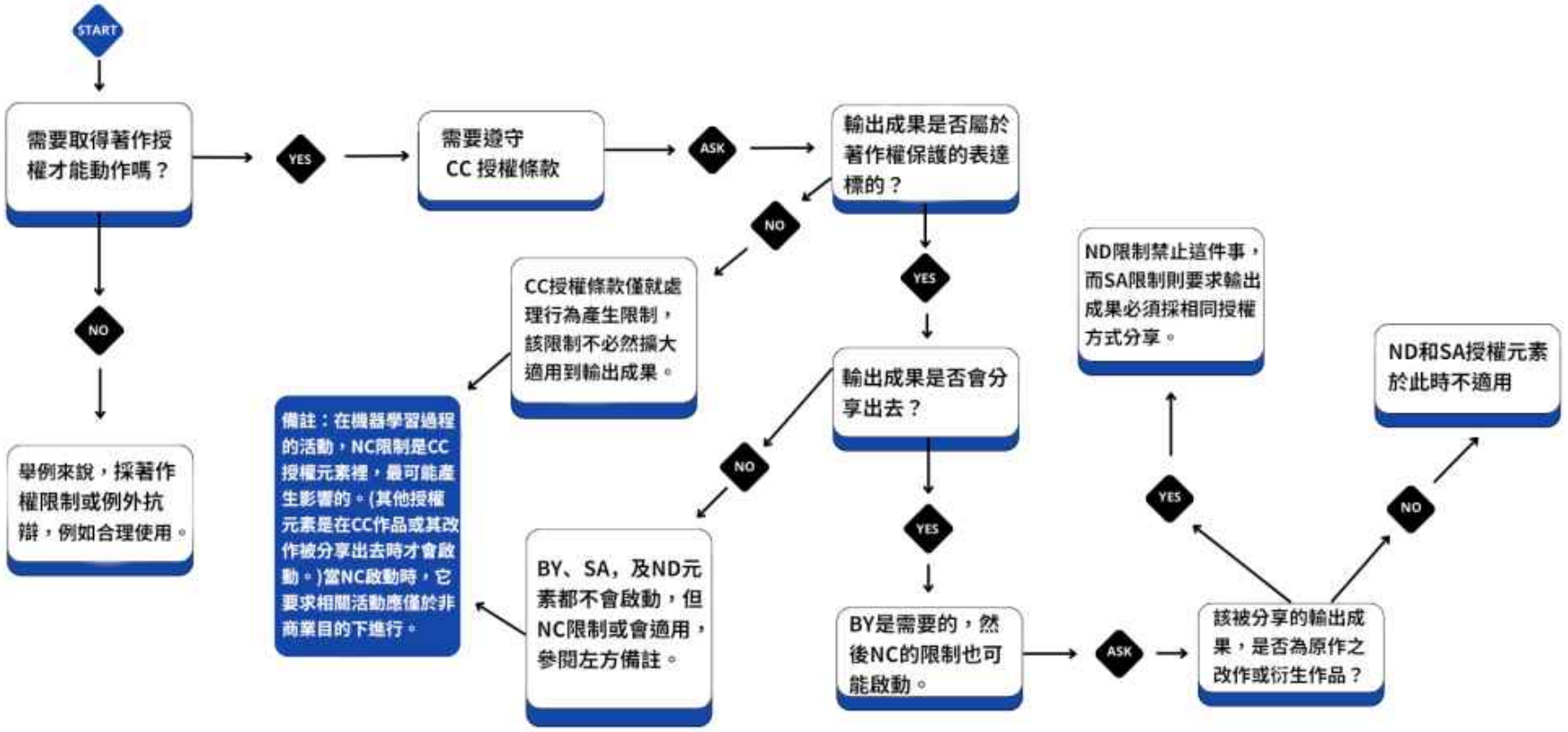
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權利人**拋棄對著作的利益**，以釋出到**公眾領域**，
讓其他人可以**不限任何目的地自由使用著作**，
從事創作、提升或再使用等行為，而不受著作權
或是資料庫相關法律的限制。

可以使用 CC 授權的素材來訓練 AI 嗎？

Understanding CC Licenses and Generative AI

CC BY-SA-3.0-TW+ @ https://tw.creativecommons.net/2025/07/07/can-cc-licensed-materials-be-used-for-ai-training/



《AI 與 CC 授權流程圖 v5》，由 Creative Commons 依 CC BY 4.0 授權條款提供，經 林誠夏 (Lucien C. H. Lin) 翻譯為繁體中文版本，並同樣依 CC BY 4.0 授權條款釋出： https://tw.creativecommons.net/2025/07/07/can-cc-licensed-materials-be-used-for-ai-training/

法律上 CC 素材可以用於 AI 訓練

然如果原著作表達留存於產出、輸出

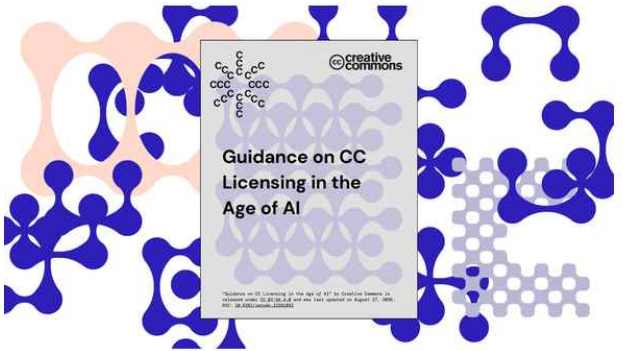
就是 BY 、 SA 、 NC 、 ND

都要遵守

Licenses & Tools

Guidance on Using CC Licenses in an AI Ecosystem

by Creative Commons



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Download The Guidance

Since 2002, Creative Commons (CC) licenses have served as legally enforceable tools for digital sharing. Beyond their functionality, they also signal a commitment to open sharing in the public interest.

CC's general guidance has been to acknowledge and support all valid uses for each of

https://creativecommons.org/2026/09/03/guidance-on-using-cc-licenses-in-an-ai-ecosystem/

策略上 CC 用於 AI 訓練

並非絕對可以、亦非絕對不行

過度 free riding 導致 Commons 萎縮

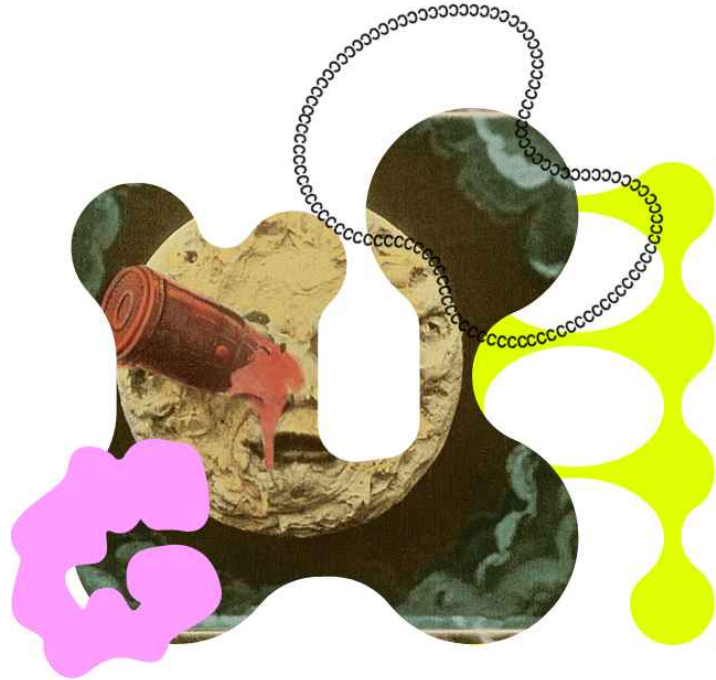
建議透過 Agency 建立正向循環

Stay informed. Sign up for CC's Newsletter.

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Introducing CC Signals: A New Social Contract for the Age of AI

by Creative Commons



Melies color Voyage dans la lune, by Georges Méliès, Public Domain.

Files
main
Go to file
.github
signals
.cc-metadata.yml
LICENSE
README.md

CC signals

In this initial proposal, we have drafted four "signal elements" for public feedback. For this phase of prototyping, we have proposed four particular combinations of signal elements that would serve as the suite of CC signals. The four proposed signals are:

- Credit
- Credit + Direct Contribution
- Credit + Ecosystem Contribution
- Credit + Open

The files with the initial proposed text for each signal are:

Name	Directory
CC Credit 0.1	`signals/cr/0.1/`
CC Credit Direct Contribution 0.1	`signals/cr-dc/0.1/`
CC Credit Ecosystem 0.1	`signals/cr-ec/0.1/`
CC Credit Open 0.1	`signals/cr-op/0.1/`

How CC signals work

每一種信號都包含內容得被機器採用的條件。也就是說，AI 開發者必須滿足這些條件才能使用內容進行 AI 開發。所有條件的設計都是為了在相當規模機器採用裡，推動有意義且可實踐的互惠性。我們的初步提案包括以下信號要素：

名譽標示：你必須依據使用方式、手段與情境，提供適宜的名譽標示。

直接回饋： 你必須向「聲明方」提供金錢或相類支持，用於該方資產的開發與維護；此支持應基於善意評估，考量你對資產的使用情況以及你的獲利手段。

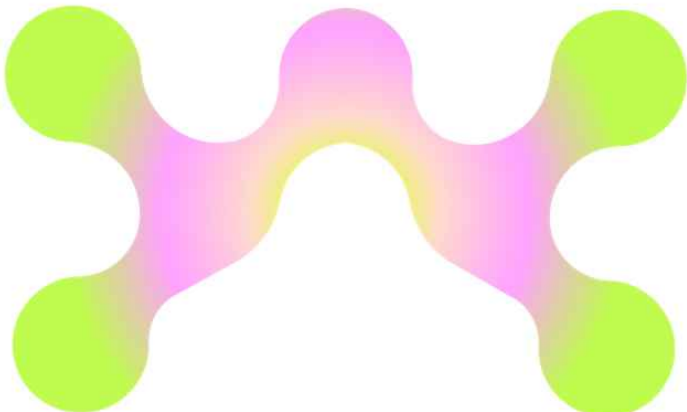
生態系回饋： 你必須對你所受益的生態系統提供金錢或相類支持，基於善意評估，考量你對資產的使用情況以及你的獲利手段。

保持開放： 使用(內容)的 AI 系統必須是開放的。例如，必須符合「模型開發框架 (Model Openness Framework, MOF) 的 II 級或 I 級，或符合「開源AI定義 (Open Source AI Definition, OSAID)」。

Licenses & Tools, Policy

Update on CC Signals: What Changed and Why

by Creative Commons



It's been a while since we last shared an update on CC signals and our work around AI and the commons. Over the past several months, we've been deep in research, in conversation, and in active collaboration with communities, policymakers, and practitioners. At the same time, we kicked off our 25th anniversary celebrations, which

臺灣主權AI訓練語料庫(Beta版)

3,314,989,595

目前累積Token數量

請輸入關鍵字 搜尋

熱門關鍵字：文化、交通、教育

連結臺灣語料，啟動無限應用可能

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History
歷史文物
文化資產與歷史沿革
文化資產與歷史沿革，重現臺灣各時期重要時刻軌跡

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在地文化
族群民俗與文化節慶
族群民俗與文化節慶，描繪臺灣豐富多彩的生活樣貌

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2.臺灣主權 AI 訓練語料授權條款

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臺灣主權 AI 訓練語料授權條款

1 、訓後脫勾→ 2 、簡化標識→ 3 、合理學習→ 4 、降減爭訟→ 5 、溯源課責→ 6 、與既有開放開源授權體系之搭配。

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- **CC-BY-NC-with-Taiwan-AI-training-exception**

重編國語辭典修訂本

分享

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資料總覽 資料下載

資料集概述

關鍵字

辭典 詞典 工具書

描述

主要適用於對歷史語言有興趣之研究者，收錄約16萬7千字詞，主要為記錄中古至現代較為常用的詞語，音讀兼採傳統及現代字音，各義項並多附有古典文獻書證，可提供研究者所需之語文史料。

資料Token數量

14,101,626

資料提供機構

教育部終身教育司

授權方式

CC授權-姓名標示-禁止改作+臺灣主權AI訓練資料授權條款-第1版

時間資訊

上架時間

2025-12-04 10:50:43

最近修改時間

2025-11-12 13:41:04

專訪

誰在使用台大師生的課程資料？專訪台大教學平台：如何避免AI資料授權爭議重演

November 28, 2025

臺灣大學的教學平台「NTU COOL」於今年（2025）9 月 25 日更新其《用戶協議》，新增條款要求使用者授權平台將其上傳的課程素材、作業、討論區內容等，經「去識別化」處理後，應用於輔助教學之人工智慧模型（AI model）的研發與後續開源計畫。若使用者不同意授權資料，個人教學平台頁面便遭凍結，導致學生無法上傳課程作業，形同變相強制同意，引發臺大學生強烈不滿，質疑此舉侵犯隱私與個人資料自主權。

https://www.cpaper.org/interview/ntu-cool/

歐盟數位單一市場著作權指令

Directive (EU) 2019/790 on copyright and related rights in the Digital Single Market

Text and Data Mining (TDM)

1.合法存取（ lawful access ）→ TDM

2.然權利人權利人得以適當方式（ appropriate manner ）
表達退出（ opt-out ）！

3.研究機構與文化典藏機構的 TDM 強制例外

NTU_COOL 使用者條款

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- NTU COOL使用者條款 FAQ
- NTU COOL 使用者資料使用說明

【前言】

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【人工智慧訓練與退出機制】

甲方未行使其人工智慧訓練退出地位，而點擊本條款之同意區塊時，視為同意將其所提供之素材，非專屬、無償授權乙方轉提供予校內其他單位（下稱收受單位）用於人工智慧之學術研究與技術開發，包括但不限於模型訓練、權重生成、程式碼或文件整備等。

前述素材經收受單位重新調整、編輯處理後之訓練資料，於與原素材未達實質近似，且不產生市場替代效果之前提下，得由該單位採「CC授權-姓名標示-非商業性 4.0 國際」或其後更新版本之授權條款發布、分享，相關姓名標示得簡化為「NTU COOL AI 訓練語料-功能說明-v.版本號」，或採其他更具流通效率之標記方式為之。

為增進公眾利益、提升學研資料於人工智慧領域之應用價值，乙方就校內單位提案釋明，明確符合《人工智慧基本法》所訂各項原則之指標性訓練資料，並依循提案時校方就人工智慧研究與應用之各項指導文件與審驗流程者，得額外同意該單位採行《臺灣主權AI訓練語料授權條款》與「CC授權-姓名標示-

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第 5 頁（共 7 頁） 100%



3



4



5



為增進公眾利益、提升學研資料於人工智慧領域之應用價值，乙方就校內單位提案釋明，明確符合《人工智慧基本法》所訂各項原則之指標性訓練資料，並依循提案時校方就人工智慧研究與應用之各項指導文件與審驗流程者，得額外同意該單位採行《臺灣主權AI訓練語料授權條款》與「CC授權-姓名標示-非商業性 4.0 國際」或其後更新版本之 CC授權條款搭配使用。意即利用該資料相關訓練成果之產出，包括相應之模型、權重與應用程式，原 CC授權條款所設之姓名標示義務、非商業性限制，將依《臺灣主權AI訓練語料授權條款》進行放寬或免除。

當利用本平臺相關素材之 **AI** 訓練成果，與原素材未達實質近似，且不產生市場或其他利用目的及性質之替代效果時，甲方同意不將相關訓練成果，視為其所貢獻素材之改作、編輯，及各類相關的智慧財產權衍生標的。除本條款所定之【人工智慧訓練與退出機制】外，甲方同意不對相關產出與輸出之後續學術利用、再散布或運算行為，施加任何限制或提出訴訟。

甲方得隨時選擇退出 AI 訓練用途，退出之意思表示可透過本條款勾選選項或使用者帳號設定完成。

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AI 訓練之額外同意條款

若蒙勾選 AI 訓練之額外允許，本素材同意單位得採行《臺灣主權 AI 訓練語料授權條款》與主授權協議搭配使用。意即利用本素材相關訓練成果之產出，包括相應之模型、權重與應用程式，主授權條款或已預設之相關限制，將依《臺灣主權 AI 訓練語料授權條款》進行放寬或免除。

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2.2. 開源的跨域合作鏈

處理 AI 取代的問題

X 上的 Jensen Huang

x.com/JensenHuang/status/2080643682408321103/photo/1

200%



Open Weights and
American AI Leadership

July 24, 2026

In the 1980s, early open-source software pioneers challenged the prevailing belief that software would advance only if companies kept tight control over their code. This movement pushed for a transparent ecosystem where developers around the world could study, modify, and improve software. Software developed by the open-source community now supports most of the internet and underlies systems used by the world's largest technology companies, as well as the U.S. military and federal agencies conducting scientific research, cybersecurity, and other critical missions. Open source did more than lower the cost of software; it created a shared foundation of knowledge on which generations of American engineers and entrepreneurs built their institutional sovereignty.

The United States now faces a similar choice with artificial intelligence. Our AI leadership will be judged not by one frontier AI model, but by whether the United States builds a strong, open ecosystem that diffuses into every sector. This is essential for creating opportunities for innovation and prosperity across the country. It requires expanding access to AI, encouraging competition, robust application layers, and giving Americans greater control over the technology they rely on. Open-weight models—AI models that anyone can download, inspect, modify, and run on their own infrastructure—are an important part of that foundation because they make advanced AI more accessible, adaptable, and widely available.

Open weights expand access to the AI economy. Startups, established businesses, universities, and public institutions can build on advanced models without training one from scratch or paying frontier-model prices for every task. Open weights let every organization match the right model to the right job at the right cost, reserving frontier-scale capability for genuine frontier problems and running efficient, specialized models everywhere else. That discipline is what will make AI economically sustainable as its use scales into the billions of everyday tasks. America wins the AI era by diffusing it into the workflows of factories, hospitals, farms, classrooms, and main street businesses.

Open weights also strengthen competition and competition is what keeps the gains of AI broadly shared rather than concentrated in a few hands. By allowing many organizations to build, adapt, and deploy advanced models, open weights create rivalry not only among model developers but across cloud chips,

1.5萬 3.8萬 16萬 5,814萬

Jensen Huang
@JensenHuang

跟隨

顯示翻譯

For my first post, I'm sharing a letter @NVIDIA signed on why open models matter.

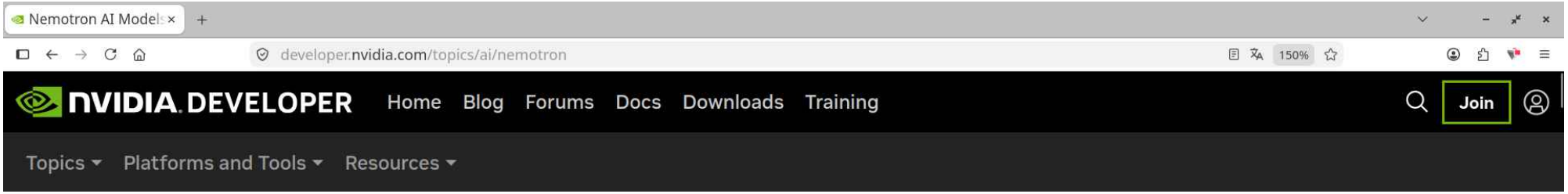
AI will transform every industry, power every company, and be built by every country.

Open models strengthen safety and cybersecurity, accelerate innovation and diffusion, and enable sovereignty.

The world needs both frontier closed models and frontier open models.

images.nvidia.com/pdf/Open-Weigh...

https://x.com/JensenHuang/status/2080643682408321103



Topics / Artificial Intelligence / NVIDIA Nemotron

On this page

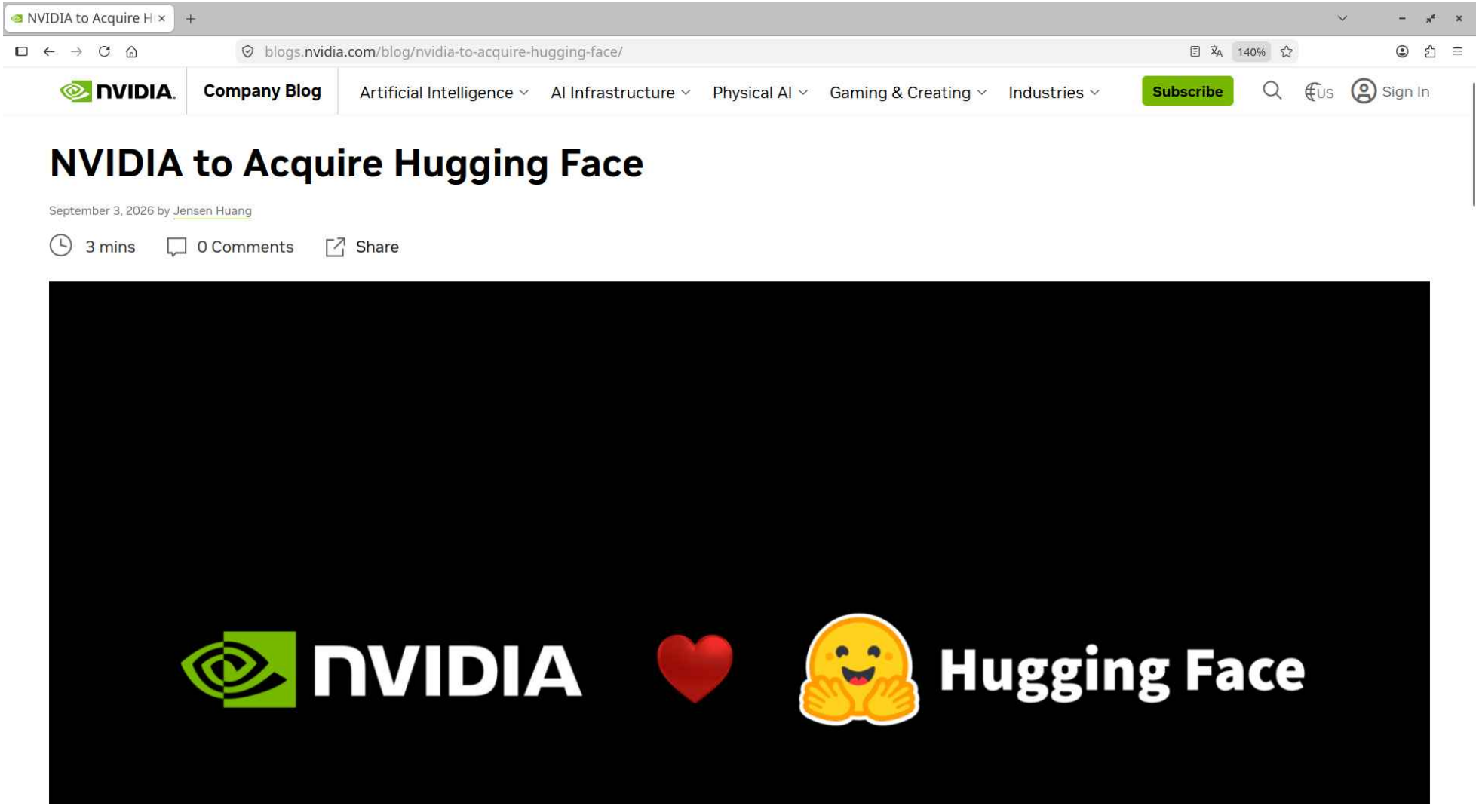
- NVIDIA Nemotron Models
- NVIDIA Nemotron Datasets
- Developer Tools
- Introductory Resources
- Starter Kits
- Inference Service Providers
- More Resources
- Ethical Considerations
- Get Started

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NVIDIA Nemotron™ is a family of open models with open weights, training data, and recipes, delivering leading efficiency and accuracy for building specialized AI agents.

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https://developer.nvidia.com/topics/ai/nemotron



https://blogs.nvidia.com/blog/nvidia-to-acquire-hugging-face/



https://www.youtube.com/watch?v=xPh-5P4XH6o



https://www.youtube.com/watch?v=xPh-5P4XH6o

WiMAX [編輯]

55種語言

維基百科，自由的百科全書

目次 隱藏

序言
WiMAX的應用
寬頻存取
行動應用
產品發布
2005
2006
2008
2010
固定式與移動式WiMAX
各項標準
IEEE 802.16e
其他競爭技術
3G及4G行動通訊系統

本條目存在以下問題，請協助**改善本條目**或在**討論頁**針對議題發表看法。 [展開]

全球互通微波存取（英語：**Worldwide Interoperability for Microwave Access**，縮寫為**WiMAX**）是一項高速無線資料網路標準，主要用在都會網路，由WiMAX論壇提出並於2001年6月成形。它可提供至少一英里無線寬頻接入，作為電纜和DSL之外的選擇。在IEEE 802.16標準的多個版本和選項中做出唯一的選擇，以保證不同廠商產品的互操作性。在802.16實體層的三個變體中，WiMAX選擇了802.16-2004版的256 carrier OFDM，能夠藉由較寬的頻帶以及較遠的傳輸距離，協助電信業者與網際網路服務提供商業者建置無線網路的最後一哩，與主要以短距離區域傳輸為目的之IEEE 802.11通訊協定有著相當大的不同。

WiMAX能提供許多種應用服務，包括最後一哩無線寬頻接入、熱點、行動通訊回程線路以及作為商業用途在企業間的高速連線。通過WiMAX一致性測試的產品都能夠對彼此建立無線連接並傳送網際網路封包資料。在概念上類似WiFi，WiMAX傳送速率更快，傳送範圍距離更大，可以簡單理解為一種「大WiFi」。

WiMAX的升級版WirelessMAN-Advanced（IEEE 802.16m）是兩個4G標準之一。

網際網路協定套組
應用層
BGP • DHCP • DNS • FTP • HTTP • HTTPS • IMAP • LDAP • MGCP • MQTT • NNTP • NTP • POP • ONC/RPC • RTP • RTSP • SIP • SMTP • SNMP • Telnet • TLS／SSL • SSH • XMPP • 更多...
傳輸層
TCP • UDP • DCCP • SCTP • RSVP • 更多...
網路層
IP（IPv4 • IPv6） • ICMP • ICMPv6 • ECN • IGMP • OSPF • IPsec • RIP • 更多...
連結層
ARP • NDP • Tunnels（L2TP） • PPP • MAC（Ethernet • DSL • ISDN • FDDI） • 更多...



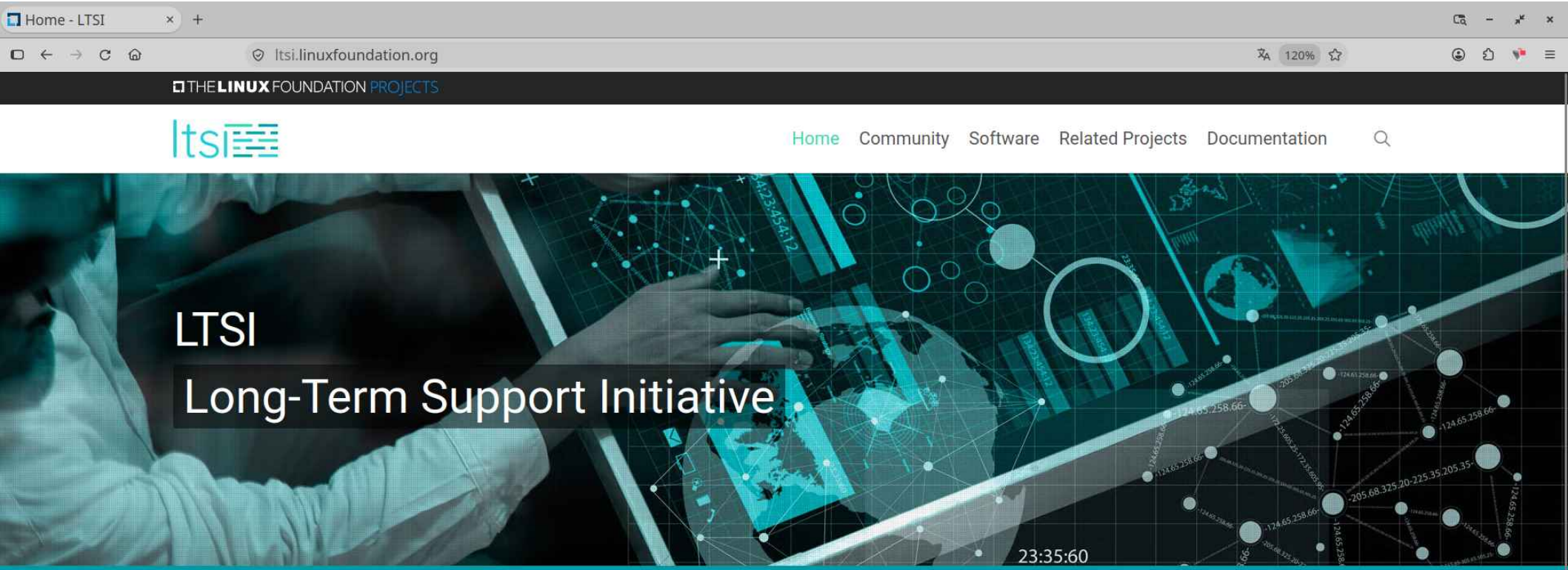
Open & Intelligent Software for the Radio Access Networks

The O-RAN Software Community (O-RAN SC or OSC) was created in 2018 as a collaboration between the O-RAN ALLIANCE and the Linux Foundation with the mission to support the creation of open software for the RAN, closely aligned with the O-RAN ALLIANCE's open architecture and specifications.

The O-RAN Software Community has successfully jumpstarted open source RAN software, supporting the industry in building open and intelligent RAN.

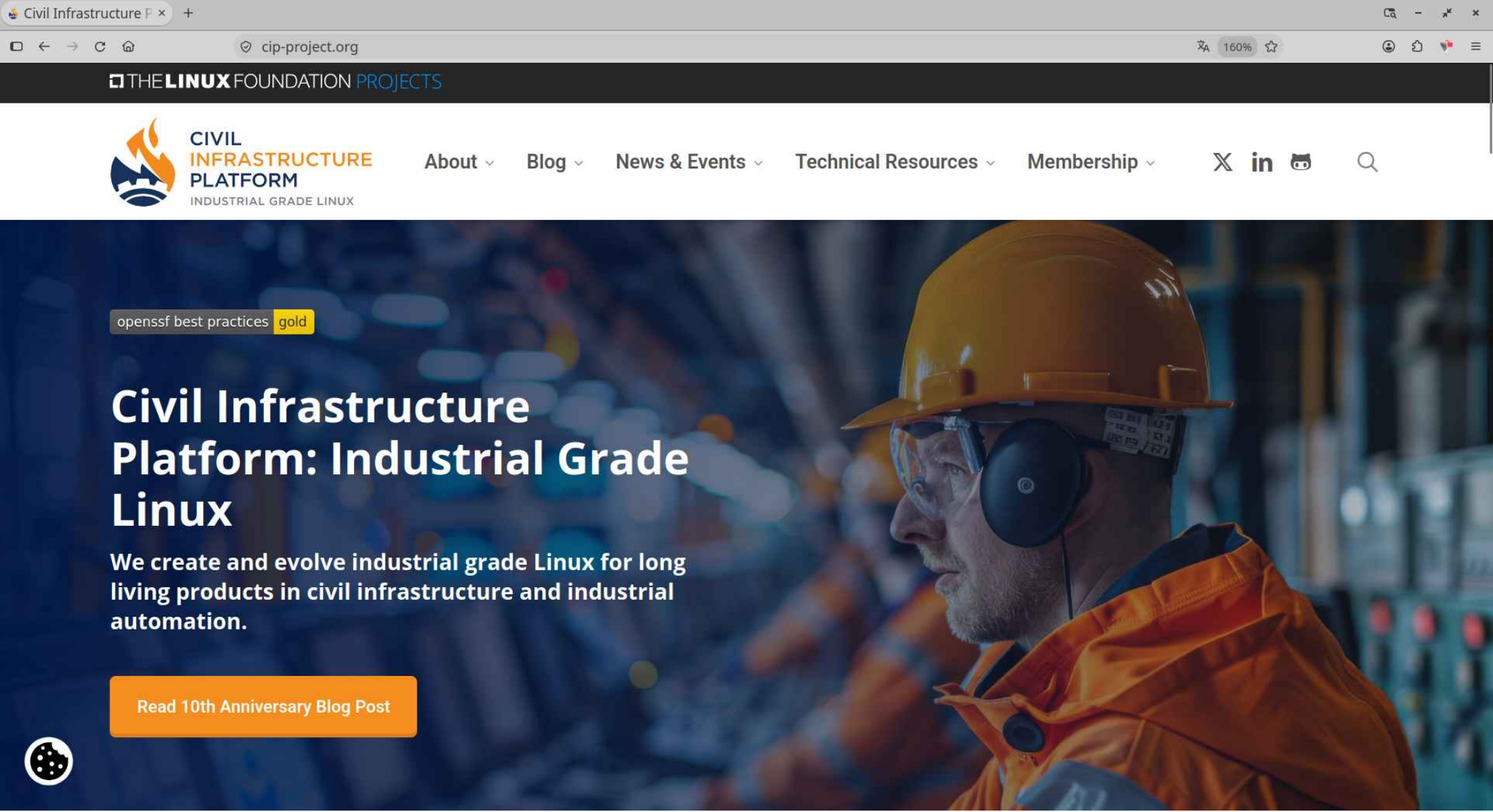
Subsequently, the O-RAN SC is being migrated to the Linux Foundation Networking (LFN). The full integration of O-RAN SC into LFN enables tighter, more efficient, and more streamlined collaboration with fellow LFN projects under a single, unified governance structure.

Read more about the migration in our press release and on the O-RAN Software Community website: o-ran-sc.org.



The LTSI is an ecosystem-wide collaborative project to create and maintain long-term sustainable kernel for the industry that contains additional features such as cutting edge device support as well as security and bug fix patch available in community long-term maintenance kernel.

https://ltsi.linuxfoundation.org/



https://cip-project.org/

可以被自由修改、自由散布的軟體專案，就是 / 才是自由開源軟體專案。

A software project is Free and Open Source only if it can be freely modified and redistributed.

Freeware →← Shareware

Free Software- 四大自由 /The Four Freedoms

Open Source Software- 十項定義 /The Ten Criteria

Free and Open Source Software- 自由開源軟體

Open Source Hardware 、 Open Data

Open Source AI vs Open-weight AI (Data Information)

Preferred Form to make modifications

原作者自己要修改軟體時，會使用的那一份最適合拿來修改的格式。

Richard Stallman

106 languages

Article Talk Read Edit View history Tools

From Wikipedia, the free encyclopedia

"Stallman" redirects here. For the flutist, see Robert Stallman. For the speculative fiction author, see Robert Lester Stallman.

Richard Matthew Stallman (/ˈ stɔːlmən/ *STAWL-mən*; born March 16, 1953), also known by his initials, **rms**,[1] is an American free software movement activist and programmer. He campaigns for software to be distributed in such a manner that its users have the freedom to use, study, distribute, and modify that software. Software which ensures these freedoms is termed free software. Stallman launched the GNU Project, founded the Free Software Foundation (FSF) in October 1985,[2] developed the GNU Compiler Collection and GNU Emacs, and wrote all versions of the GNU General Public License.

Stallman launched the GNU Project in September 1983 to write a Unix-like computer operating system composed entirely of free software.[3] With that he also launched the free software movement. He has been the GNU project's lead architect and organizer, and developed a number of pieces of widely used GNU software including among

Richard Stallman



https://en.wikipedia.org/wiki/Richard_Stallman



FAIR USE @ https://medium.com/curious-burrows/the-story-of-open-source-so-far-bfcb685d85a4

真正的開源 The real open source =

主控權能被後手完整承襲

Full transfer of control to downstream users

基礎建設 as fundamental infrastructure

開源授權的六大特性

符合 FSF 自由軟體定義或 OSI 開放源碼定義者

1 、非專屬授權 non-exclusive

2 、不可撤回 irrevocable

3 、免授權金 royalty-free

4 、不附隨擔保 no warranties

5 、不限制目的、時間、地域

for any purpose, perpetual, worldwide

6 、使用、重製、修改、發布

freedom to run, copy, modify, and redistribute

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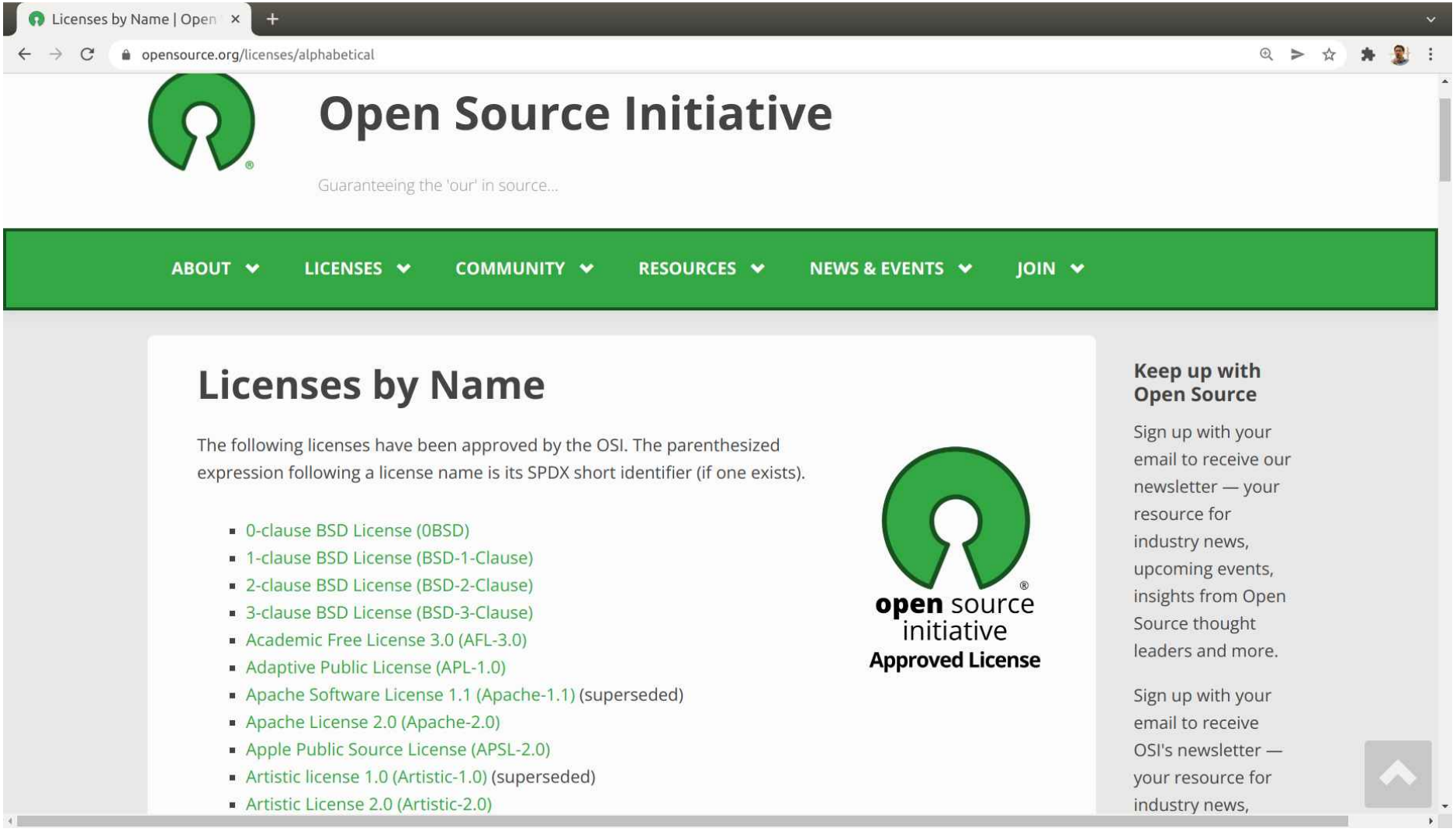
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開源授權：

1. 只要合規、取得的開源授權永久不會撤回
2. 使用規則就是依取得時那份條款
3. 要求註引出處、或必要時相同方式分享，但原則上不會有其他限制。

公眾授權條款 General Public License

1 、對公眾皆可適用、**永久有效**

2 、**規則一致**、條件一致

3 、原則上**沒有增刪修改異動**相關內容的機會

公眾授權建立信任

因為授權模式全球相通

而且不能 / 很難更改

License Steward

GPL-FSF 、 MPL-Mozilla Foundation 、 Apache-2.0-ASF 、 EPL-Eclipse Foundation 、 CC License Suite-Creative Commons

Ecosystem

建構開放標準統合
軟硬整合的生態系

Source Available ≠ Open Source

源碼可及、僅是可及

並不擔保穩定的開放式利用狀態

Source Available ≠ Open Source

見源軟體、看得到不一定摸得著

意思就是能不能用還要再考究



https://faircode.io/

Fair-code licenses

Business Source License

https://mariadb.com/bsl11

Commons Clause with any OSI approved open-source license

https://commonsclause.com

Confluent Community License

https://www.confluent.io/confluent-community-license

Elastic License 2.0 (ELv2)

https://www.elastic.co/licensing/elastic-license

Server Side Public License

https://www.mongodb.com/licensing/server-side-public-license

Sustainable Use License

https://github.com/n8n-io/n8n/blob/master/LICENSE.md

https://faircode.io/

Meta 喬不定只能回歸開源的共識規則……

Llama 1: GPL-3.0 Code + Non-commercial Weights

Llama 2–4: Respective Llama Community Licenses

Muse Glimmer 30B: Apache-2.0 + Usage Policy

Muse Spark 1.3: Proprietary / API Only

Meta AI 模型在開源、開放權重與專有模式之間的歷史游移

NVIDIA Open Model License 並非傳統開源

- revocable (as stated in Section 2.1)
- U.S. Export Administration Regulations and Office of Foreign Assets Control regulations

Moonshot AI Kimi models

Kimi 1: MIT License

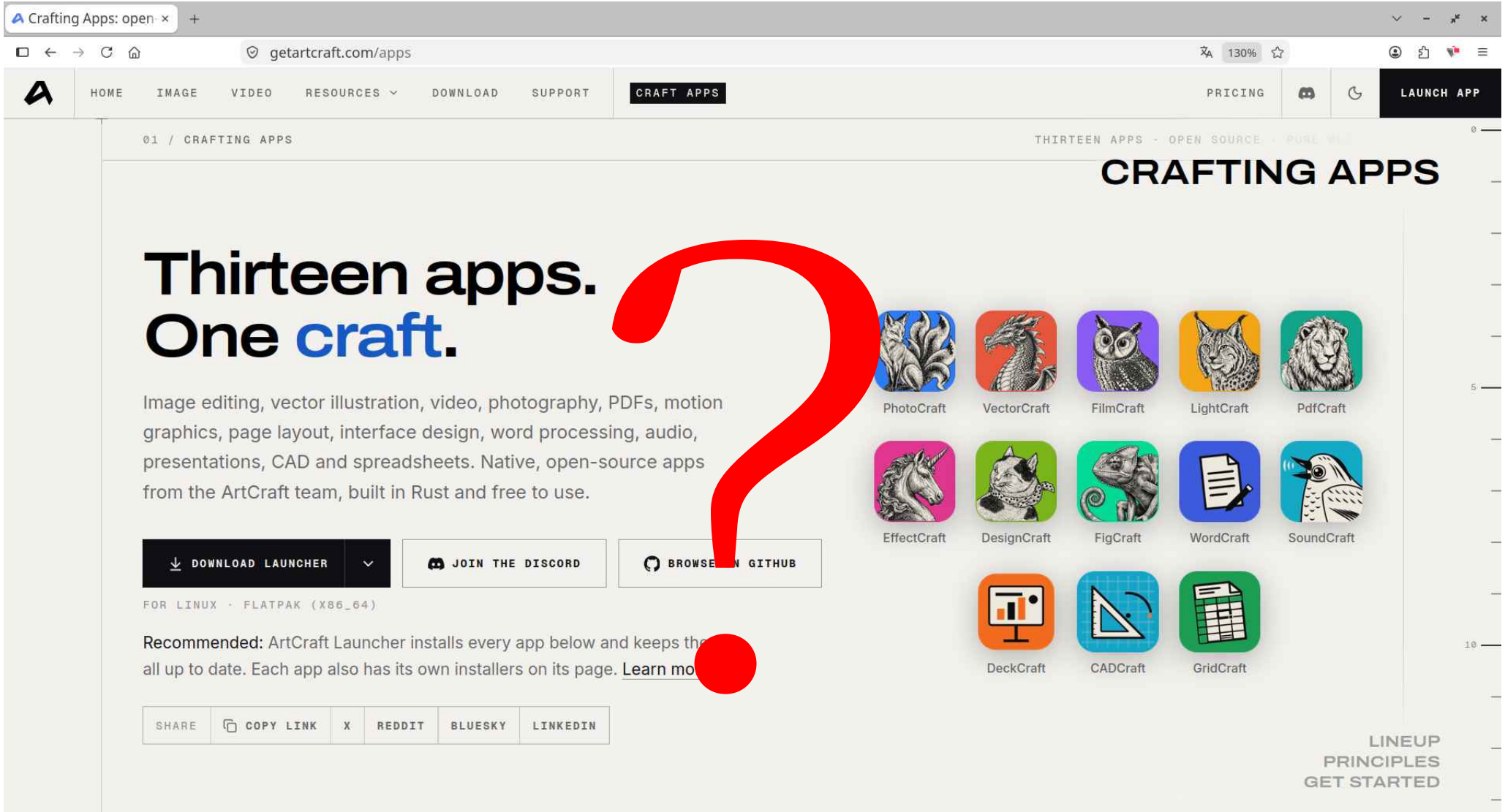
Kimi 2: Modified MIT License : display "Kimi K2" when 100 million monthly active users or 20 million US dollars in monthly revenue

Kimi 3: Kimi K3 License : "Kimi K3" + "Model as a Service" 20 million US dollars over 12 months → Source Available License

真開源、準開源、假開源

2.3. CRA 下的資安協作架構

處理 AI 驗證和責任分擔的問題



https://getartcraft.com/apps

AI 軟體生態系（Ecosystem）

-- 以開源為核心協作基礎

-- 善用 AI 工具快速搭建特色功能

-- prompt/agent engineering 的 know-how

為新式護城河

AI Compliance Engineering

1.公司政策：容許列表 / 拒絕列表

2.請 AI 找 bug 、補洞、請 AI 資安弱掃→工具性使用

3.不要用 AI 整隻轉譯第三方程式碼

4.必要時請 AI 分析其互動邏輯、再依此邏輯重新寫程式

5.毋須所有程式重新寫、 MIT 或寬鬆的 APIs 直接用

6.做好版本控制紀錄的保存以供必要驗證

Open Source as the Business Intelligence

Understanding US

https://www.linuxfoundation.org/resources/publications/understanding-us-export

PUBLICATION

Understanding US export controls with open source projects

DOWNLOAD REPORT

One of the greatest strengths of open source development is how it enables collaboration across the entire world. However, because open source development is a global activity, it necessarily involves making available software across national boundaries. Some countries' export control regulations, such as the United States, may require taking additional steps to ensure that an open source project is satisfying obligations under local regulations.

In July of 2020, The Linux Foundation published a whitepaper on how to address these issues in detail. In 2021, the primary update in the paper is to reflect a change in the US Export Administration Regulations.



DOWNLOAD REPORT

https://www.linuxfoundation.org/resources/publications/understanding-us-export-controls-with-open-source-projects

美國出口管制規則 (EAR):

1. 雖然主體管的是專利 (技術)
2. 但軟體出口不是不管
3. 然軟體已先行公開 (publicly available) 者、低度管制，
4. 僅其中涉及加密 (encryption) 技術者、要管
5. 然若此加密技術若亦公開可及、電郵備查

《加州 AI 透明法》

SB 942 《 California AI Transparency Act 》

2026 SB 1000 修正

GenAI hosting platform

所提供的 AI 模組若不予標示則撤回授權 →

當得知所提供的 AI 模組若不予標示則告知其違反法規

《加州年齡驗證法案》

AB-1856 《 California's Age Verification Bill 》

Operating System Provider

資訊系統平台未來可能被要求負責取得、判定並提供使用者年齡區間訊號 →

純粹提供自行安裝的開源軟體作業系統 (Open Source Operating System) 除外

貼文



高市早苗
@takaichi_sanae

顯示翻譯

皆様に、今夜に対応して頂きたい大至急のお願いです。

多くのウェブサイトで使用されているPHPに関し、PHPのセキュリティチームが、重大な２件の脆弱性に関する注意喚起を行っています。

公開しているウェブサイトでPHPを使用しているか確認し、今夜、10月21日午後11時（日本時間）に公開される修正パッチについて、可及的速やかに適用できるよう準備をお願いします。

修正パッチを速やかに適用することが困難な場合は、例えばウェブサイト等を一時的に停止させることも、リスクを低減させるための有効策の一つと考えられます。

国家サイバー統括室のXアカウントでも関係する情報を発信しています

登入或註冊 X 帳戶
看看正在發生什麼事並加入對話
Continue with phone
使用 Apple 帳戶繼續
使用 Google 帳戶繼續
或
使用使用者名稱或電子郵件登入
掃描以取得應用程式
相關人士
高市早苗
@takaichi_sana
衆議院議員 自由
挙区支部長
※総理在任中の投稿は、一部広報スタッフによるものを含みます。

同一週，七個主流語言都出了安全修補

2026 年 10 月 19 日 – 22 日 | 日期以各官方公告為準

平台	漏洞／事件	嚴重度
語言與執行環境		
Linux kernel	KSMBD 兩個遠端程式碼執行等 6 份漏洞報告	最高 9.0
Node.js	三個分支、10 個 CVE	最高 High
Python	certifi 移除 emSign 根憑證 + tarfile CVE	Medium
Go	CVE-2026-111943 封鎖 eMudhra 中繼憑證	未評分
Rust	rustls-webpki 等三筆 RustSec、wasmtime	最高 9.9
Java	Oracle CPU：Java SE 55 個修補	最高 7.5
PHP	PHP2Shell	9.2
套件與平台		
LiteLLM	1.107.0 在 PyPI、Docker Hub 被投毒	投毒事件
GitLab	CVE-2026-110264 等 12 個問題	10.0
Chrome	Chrome 156，353 個安全修補	6 個 Critical
Plex	Plex2Shell，已被利用	4.3–7.2
Cisco	14 份公告、34 個 CVE	最高 9.8
Railway	環境變數外洩	平台資安事件

9.0 以上／Critical　7.0–8.9／High　Medium　未評分　事件

Fair Use @ https://www.facebook.com/share/p/1FNxADybhT/



https://archive.fosdem.org/2024/events/attachments/fosdem-2024-3683-the-regulators-are-coming-one-year-on/slides/22201/Slides_CRA_FOSDEM_v3_ukPnQUG.pdf

EU Cyber Resilience Act, CRA

Manufacturers shall, upon identifying a vulnerability in a component, including in an open source component, which is integrated in the product with digital elements, report the vulnerability to the person or entity maintaining the component.

ETSI EN 303 645/ 歐洲電信標準協會

Security by Design-- 基於安全的設計

1. 不要綁定預設通用密碼 2. 弱點通報的管理與執行 3. 保持軟體更新

4. 機敏安全參數的確保 5. 採安全方式通訊 6. 減少暴露在攻擊面的可能

7. 確保軟體完整狀態 8. 確保個人資料儲放安全 9. 系統抗中斷的韌性

10. 透過遙測數據檢測系統異常 11. 便利使用者刪除個人資料

12. 簡化暨強化設備安裝和維護的步驟 13. 驗證輸入資料

法律責任的轉變：在 CRA 框架下，將 FOSS 整合進商業產品的「製造商」，其法律責任與過往有何本質上的不同？


Made with OpenAI GPT-5.6 Sol by Lucien C.H. Lin & Ramus Lin, CC0-1.0.

《優生保健法》

《兒童及少年福利與權益保障法》



https://sutian.moe.edu.tw/zh-hant/su/26974/

IoT / Digital Elements 商品的資安維護（擔保期間的修復、通報、告知）

1. 修復： Expected lifetime ；原則至少 5 年
2. 通報： ENISA ／ CSIRT - Single Reporting Platform

   24hr ／ 72hr ／ 14 days （漏洞）； 1 month （嚴重事件）
3. 告知： Affected users

https://digital-strategy.ec.europa.eu/en/library/commission-publishes-new-guidance-support-timely-cyber-resilience-act-implementation

Single Reporting Platform (SRP)

← Back to main topic

SUBTOPICS

Single Reporting Platform (SRP)

CONTENT

→ Frequently Asked Questions

→ CRA SRP guidance - AR Interface functions

→ CRA SRP guidance - AR Notification submission and update

→ CRA SRP guidance - AR User registration

The Cyber Resilience Act (CRA) introduces the Single Reporting Platform (SRP) for cybersecurity incident reporting in the EU Digital Single Market.

enisa | CRA SINGLE REPORTING PLATFORM

The Single Reporting Platform (SRP) shall become a technical tool for the reporting of actively exploited vulnerabilities and incidents impacting products with digital elements in the EU Digital Single Market.

Under the Cyber Resilience Act (CRA), manufacturers of products with digital elements are mandated to report actively exploited vulnerabilities and severe incidents having an impact on the security of the products.

As of 11 September 2026 onwards, the SRP will be used by CSIRTs and manufacturers for mandatory reporting and could be used by any natural/legal persons for voluntary reporting.

Throughout 2025 and 2026, ENISA is taking the necessary steps to support the successful implementation of the platform.

https://www.enisa.europa.eu/topics/product-security/single-reporting-platform-srp

開源與 CRA 在立法歷程的衝突與調適

- 產品製造商、販售者擔負資安 - 誰做誰負責
- 純粹開源分享並非產品 - 做開源的不一定直接賺錢
- 然將開源元件商用即課產品責任 - 誰賺誰負責
- 開源有其減輕配套然應透明可及 - 增訂開源除外規定，但也希望開源原生者，能提供一些資安提升上的幫助！

Regulation (EU) 2024/2847 -- CRA, Article 3(48)

(48) ‘free and open-source software’ means software the source code of which is openly shared and which is made available under a free and open-source licence which provides for all rights to make it freely accessible, usable, modifiable and redistributable; → 四大自由

https://eur-lex.europa.eu/eli/reg/2024/2847/oj/eng#art_3

歐盟《 Cyber Resilience Act 》（ CRA ）

1. Open-source Software Steward

(1) 維運資安政策 (2) 配合市場監督 (3) 提供相關文件

(4) 重大資安事件或已遭利用漏洞的通報與公告 (5) 不適用行政罰鍰（ administrative fines ）

2. Open-source Software 資安認證緩衝

- 一般產品 / 重要產品 Class I / 重要產品 Class II / 關鍵產品 Critical
- 數位元素 / 身份存取、密碼管理 / 防入侵、防竄改機制 / 安全盒、智慧閘道總樞
- 資安可自評 / 建立流程標準可自評或第三方評鑑 / 第三方評鑑 / 指定資安認證方案

技術文件開源可及者、 Class I + Class II 可轉為自評

Vulnerability Disclosure

1. 漏洞通報義務 --2026.9

2. 盤點產品線裡哪些 FOSS 已有 Steward

ASF / Eclipse Foundation / The Linux Foundation / Python Software Foundation / Mozilla Foundation / Document Foundation / KDE e.V. / GNOME Foundation / OpenJS Foundation / Rust Foundation / OpenInfra Foundation / OSGeo Foundation

3. 盤點產品線裡哪些 FOSS 已有 Commercial Support(試舉 10 例)

Red Hat （ IBM ） / SUSE / Canonical / GitLab / Percona / Confluent / Elastic / MariaDB plc / Docker / IBM （ HashiCorp ）

4. 保持所使用開源元件或商業授權元件的版本號

5. 資安補正透過溯源 (upstream) 方式實踐

6. 資安修復 (可委外) / 資安通報 (可部份委外) / 資安告知 (應承擔)

EU Cyber Resilience Act Stewardship Guidelines for Red Hat Supported Open Source Projects

PDF download - EU Cyber Resilience Act Stewardship Guidelines for Red Hat Supported Open Source Projects.

Last updated: June 12, 2026

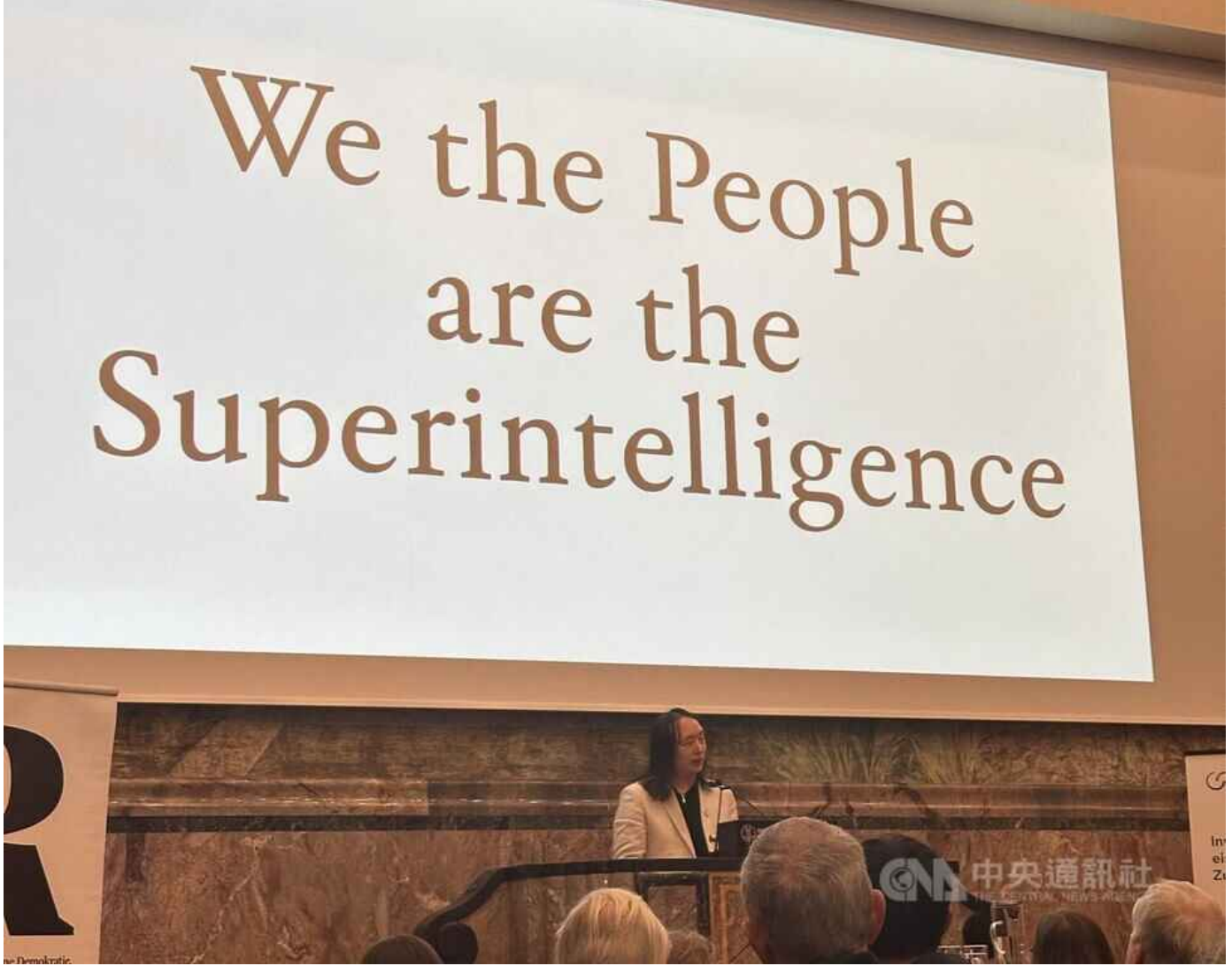
Introduction to the CRA Stewardship

The enactment of the European Union's Cyber Resilience Act (CRA) marks a definitive turning point in the governance of the global software supply chain. For decades, the open source ecosystem has operated on a foundation of voluntary collaboration, best-effort security practices, and a distinct lack of warranty or liability. The CRA fundamentally alters this landscape by introducing statutory cybersecurity requirements for products with digital elements (PDEs) placed on the European market. While the regulation primarily targets commercial manufacturers who monetize software, the interconnected nature of modern software development means that upstream open source projects—specifically those that serve as the foundation for commercial enterprise products—can no longer operate in a regulatory vacuum.

The legislation introduces a new legal actor: the Open Source Software Steward. Read more in the Red Hat blog. This role was specifically architected by EU legislators to recognize the critical infrastructure provided by open source foundations and corporate sponsors, while simultaneously shielding individual contributors and non-commercial projects from the weight of full manufacturer compliance. For the **15 projects** within the scope of this guidance - **Ansible, Fedora, CentOS Stream, Konflux, Quay, StackRox, OKD, crun, hermeto, IIB, Maistra, OSbuild, Pulp, RamaLama, sssd** - Red Hat has formally identified itself as an Open Source Software Steward. This designation is not merely a label; it is an acknowledgment of Red Hat's systematic, sustained support for these communities and its intent to ensure their viability.

以協作力量導入

透明可課責的 AI 應用生態



FAIR USE @ https://www.cna.com.tw/news/aipl/202512060011.aspx
https://civic.ai/tw/we-the-people-are-truly-the-superintelligence/



DATA PROVENANCE INITIATIVE

Public evidence for accountable AI

DPI maps the datasets, web policies, model markets, and real-world AI uses that shape how AI systems are built and governed.

Explore research ↗

Covered, cited, and used across research, journalism, policy, and public-interest AI governance.

Financial Times | The New York Times | The Washington Post | MIT Technology Review | IEEE Spectrum | GOV.UK

4,000+ datasets audited

14,000 web domains tracked

851k open models measured

23,158 AI conversations annotated

The General-Purpos
digital-strategy.ec.europa.eu/en/policies/contents-code-gpai
130%
An official website of the European Union How do you know?

The General-Purpose AI Code of Practice

Page Contents

The 3 chapters of the code
Signatories of the code of practice

The code of practice helps industry comply with the AI Act legal obligations on safety, transparency and copyright of general-purpose AI models.

The General-Purpose AI (GPAI) code of practice is a voluntary tool, prepared by independent experts in a multi-stakeholder process, designed to help industry comply with the AI Act's obligations for providers of general-purpose AI models. Read more about the timeline and the drafting process of the code.

The code was published on July 10, 2025. It is complemented by Commission guidelines on key concepts related to general-purpose AI

Quick links

Drawing-up a General-Purpose AI Code of Practice
Signing the General-Purpose AI Code of Practice – Questions & Answers
AI Office invites providers to sign the GPAI Code of Practice
Commission Assessment of the GPAI Code of Practice

https://digital-strategy.ec.europa.eu/en/policies/contents-code-gpai

Chapter I: General Provisions +

Chapter II: Prohibited AI Practices +

Chapter III: High-Risk AI Systems +

Chapter IV: Transparency Obligations for Providers and Deployers of Certain AI Systems +

Chapter V: General-Purpose AI Models −

Section 1: Classification Rules

Article 51:

Article 53: Obligations for providers of general-purpose AI models

Summary +

1. Providers of general-purpose AI models shall:

(a) draw up and keep up-to-date the technical documentation of the model, including its training and testing process and the results of its evaluation, which shall contain, at a minimum, the information set out in Annex XI for the purpose of providing it, upon request, to the AI Office and the national competent authorities;

(b) draw up, keep up-to-date and make available information and documentation to providers of AI systems who intend to integrate the general-purpose AI model into their AI systems. Without prejudice to the need to observe and protect intellectual property rights and confidential business information or trade secrets in accordance with Union and national law, the information and documentation shall:

(i) enable providers of AI systems to have a good understanding of the capabilities and limitations of the general-purpose AI model and to comply with their obligations pursuant to this Regulation; and

(ii) contain, at a minimum, the elements set out in Annex XII;

(c) put in place a policy to comply with Union law on copyright and related rights, and in particular to identify and comply with, including through state-of-the-art technologies, a reservation of rights expressed pursuant to Article 4(3) of Directive (EU) 2019/790;

Chapter III: High-Risk AI Systems +

Chapter IV: Transparency Obligations for Providers and Deployers of Certain AI Systems +

Chapter V: General-Purpose AI Models +

Chapter VI: Measures in Support of Innovation +

Chapter VII: Governance +

Chapter VIII: EU Database for High-Risk AI Systems +

(b) the acceptable use policies applicable;

(c) the date of release and methods of distribution;

(d) how the model interacts, or can be used to interact, with hardware or software that is not part of the model itself, where applicable;

(e) the versions of relevant software related to the use of the general-purpose AI model, where applicable;

(f) the architecture and number of parameters;

(g) the modality (e.g. text, image) and format of inputs and outputs;

(h) the licence for the model.

2. A description of the elements of the model and of the process for its development, including:

(a) the technical means (e.g. instructions for use, infrastructure, tools) required for the general-purpose AI model to be integrated into AI systems;

(b) the modality (e.g. text, image, etc.) and format of the inputs and outputs and their maximum size (e.g. context window length, etc.);

(c) information on the data used for training, testing and validation, where applicable, including the type and provenance of data and curation methodologies.

Thanks! 謝謝！